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**Preparatory Commission for the Entry into Force
of the Agreement under the United Nations
Convention on the Law of the Sea on the
Conservation and Sustainable Use of Marine
Biological Diversity of Areas beyond National
Jurisdiction and the Convening of the First Meeting
of the Conference of the Parties to the Agreement**

Third session

New York, 23 March–2 April 2026

**Report of the Preparatory Commission for the Entry into
Force of the Agreement under the United Nations
Convention on the Law of the Sea on the Conservation and
Sustainable Use of Marine Biological Diversity of Areas
beyond National Jurisdiction and the Convening of the First
Meeting of the Conference of the Parties to the Agreement**

I. Introduction

1. In its resolution [78/272](#), the General Assembly decided to establish a preparatory commission to prepare for the entry into force of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction (the Agreement) and for the convening of the first meeting of the Conference of the Parties to the Agreement. The General Assembly also decided that the commission would meet at United Nations Headquarters, unless otherwise decided, and that the commission would cease to exist at the conclusion of the first meeting of the Conference of the Parties.

2. In accordance with paragraph 13 of the resolution, support and secretariat services were provided to the Preparatory Commission for the Entry into Force of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction and the Convening of the First Meeting of the Conference of the Parties to the Agreement by the Division for Ocean Affairs and the Law of the Sea of the Office of Legal Affairs, in cooperation with other relevant departments of the Secretariat.



II. Organizational matters

A. Sessions of the Preparatory Commission

3. Pursuant to General Assembly resolution [78/272](#), a three-day organizational meeting of the Preparatory Commission was held from 24 to 26 June 2024 to discuss organizational matters, including the election of the Co-Chairs and a Bureau of the Commission, the dates of the meetings of the Commission and the programme of work of the Commission. The first and second sessions of the Commission were convened by the Secretary-General from 14 to 25 April and from 18 to 29 August 2025, respectively, at United Nations Headquarters, in accordance with resolution [78/272](#) and General Assembly decision 78/560. Pursuant to the same decision, and following consultations with the Co-Chairs, the Secretary-General convened the third session of the Commission from 23 March to 2 April 2026 at United Nations Headquarters in New York.

B. Election of officers

4. During the organizational meeting, the Preparatory Commission elected, at its first plenary meeting, the then-Deputy Permanent Representative, and current Permanent Representative, of Belize to the United Nations, Janine Coye-Felson, and, at its sixth plenary meeting, Adam McCarthy, Chief Counsel and First Assistant Secretary at the Department of Foreign Affairs and Trade of Australia, as Co-Chairs of the Commission.

5. At the same meeting, with regard to the Bureau, the Preparatory Commission decided, in accordance with paragraph 7 of resolution [78/272](#), to proceed on the basis of the practice of the intergovernmental conference on an international legally binding instrument under the United Nations Convention on the Law of the Sea on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, and to elect the members of the Bureau in a national capacity, on the understanding that, as far as possible, the Vice-Chairs should not change from one session to the next, in order to ensure stability in the Bureau, and being mindful of the need to take into account gender balance.

6. On that basis, the Preparatory Commission elected a Bureau consisting of the following members: Antigua and Barbuda, Australia, Belgium, Brazil, Chile, Germany, Japan, Latvia, Mauritius, Philippines, Poland, Romania, Sierra Leone, Singapore and South Africa. Following the resignation of Australia from the Bureau upon the election of Mr. McCarthy as Co-Chair on 26 June 2024, the Commission elected Canada to fill the seat left vacant on the Bureau.

7. Moreover, the Preparatory Commission took note that, on an exceptional basis and without setting a precedent, the three seats on the Bureau for the Group of Asia-Pacific States would be rotated among nine States for the sessions of the Commission; that the following States would sequentially replace each other for the organizational, first substantive and second substantive sessions, respectively: Singapore, Tonga and Fiji; Japan, China and the Republic of Korea; and the Philippines, Indonesia and Viet Nam. Accordingly, on that understanding, Singapore, Japan and the Philippines served as members of the Bureau for the organizational meeting Tonga, China and Indonesia served as members of the Bureau for the first substantive session and Fiji, the Republic of Korea and Viet Nam served as members of the Bureau for the second substantive session. It was further agreed that, for subsequent sessions, if any, the membership of the Bureau for the seats of the Group of Asia-Pacific States would be as communicated to the Co-Chairs by the States concerned. In advance of the third

substantive session of the Commission, the Co-Chairs were informed that Japan, Singapore and the Philippines would serve as members of the Bureau for that session.

C. Modalities of work

8. In paragraph 7 of resolution [78/272](#), the General Assembly decided that the rules and the established practice applicable to the procedure of the intergovernmental conference on an international legally binding instrument under the United Nations Convention on the Law of the Sea on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, as reflected in paragraphs 17, 18 and 19 of resolution [72/249](#) of 24 December 2017, would apply mutatis mutandis to the procedure of the Preparatory Commission unless otherwise agreed by the Commission.

9. In the resolution, the General Assembly also decided that, after 20 September 2025 or the date of entry into force of the Agreement,¹ whichever came earlier, the taking of decisions by the Preparatory Commission should only be by States and regional economic integration organizations that had signed the Agreement or had ratified, approved, accepted or acceded to the Agreement. It further decided that the Commission would take decisions on any recommendations to the Conference of Parties to the Agreement at the final meeting of the Commission.

10. At its organizational meeting, held from 24 to 26 June 2024, the Preparatory Commission decided that its substantive sessions should proceed in a manner that ensured transparency, inclusivity and meaningful participation, that its meetings would be provided with full conference services, including interpretation and documentation in all official languages, webcasting and press and meetings coverage, and that there should be no more than two parallel meetings, if any, at any given time during those sessions. In the light of the liquidity crisis facing the United Nations, which had a direct impact on the modalities of work of the Commission, and the resulting limited availability of certain conference services, including interpretation and webcasting, the Commission subsequently agreed that flexibility would be exercised in the implementation of those modalities.

11. The Preparatory Commission also decided, at its organizational meeting, that informal working groups or other working methods, including possible intersessional work, might be established by the Co-Chairs, in consultation with the Bureau, to progress the work of the Commission. At its first session, the Commission established three informal working groups corresponding to the three clusters of issues discussed during its organizational meeting, with Informal Working Group I addressing issues falling under cluster I, entitled “Governance issues”; Informal Working Group II addressing issues falling under cluster II, entitled “Issues pertaining to the operation of the Clearing-House Mechanism”; and Informal Working Group III addressing issues falling under cluster III, entitled “Financial rules, and financial resources and mechanism”. The Commission continued this approach during the second and third sessions.

12. To advance its work, the Preparatory Commission decided to hold parallel meetings during its second and third sessions. To ensure that all delegations were informed of, and had opportunities to engage on, the issues considered in the parallel meetings, the Commission decided that there would be regular reporting back to the plenary on the work of the parallel meetings.

¹ In accordance with article 68 of the Agreement, the Agreement entered into force on 17 January 2026, namely 120 days after the deposit of the sixtieth instrument of ratification, approval, acceptance or accession.

D. Documentation

13. The documents of the Preparatory Commission are listed in annex XI to the present report.

14. In addition, a number of informal documents were circulated ahead of, or during, the sessions of the Preparatory Commission, as reflected in section II.E below.

E. Proceedings of the sessions of the Preparatory Commission

1. Organizational meeting

15. At its organizational meeting, held from 24 to 26 June 2024, the Preparatory Commission held six plenary meetings.

16. At the beginning of the meeting, on 24 June 2024, the then-Under-Secretary-General for Legal Affairs and United Nations Legal Counsel, Miguel de Serpa Soares, delivered opening remarks, which were followed by general statements from delegations.

17. The Preparatory Commission adopted the agenda of the organizational meeting ([A/AC.296/2024/1](#)) and its organization of work ([A/AC.296/2024/2](#)) without amendment.

18. Discussions on the programme of work of the Preparatory Commission proceeded on the basis of a note by the Secretariat on matters to be addressed at the first meeting of the Conference of the Parties to the Agreement ([A/AC.296/2024/3](#)). The Commission decided to request that the Co-Chairs, in consultation with the Bureau, prepare the provisional programme of work of the Commission on the basis of the three clusters of issues discussed during the organizational meeting, which included matters to be addressed by the Conference of the Parties as expressly set out in the Agreement, as well as additional matters identified during the organizational meeting that might be addressed at an early stage by the Conference of the Parties. The Commission also agreed that the agenda of its substantive sessions would not include any item on general statements.

19. During the organizational meeting, the Preparatory Commission further considered its modalities of work and the dates of its substantive sessions and decided to request that the Co-Chairs identify the required documentation for the first and second substantive sessions, in consultation with the Bureau and with the support of the Secretariat.

20. On 26 June 2024, the meeting heard a closing statement delivered by one of the Co-Chairs of the Preparatory Commission, Ms. Coye-Felson ([A/AC.296/2024/4](#)).

2. First session

21. The first session of the Preparatory Commission was held from 14 to 25 April 2025.

22. At the beginning of the session, on 14 April 2025, the Co-Chairs of the Preparatory Commission and the Under-Secretary-General for Legal Affairs and United Nations Legal Counsel, Elinor Hammarskjöld, delivered opening remarks.

23. The Preparatory Commission adopted its agenda ([A/AC.296/2025/1](#)) and programme of work ([A/AC.296/2025/2](#)), on the understanding that both would apply to the entire Commission and would not be specific to each session.

24. The Preparatory Commission subsequently considered the proposed organization of work, developed by the Co-Chairs, in consultation with the Bureau. The Commission agreed that it would consider agenda item 5, entitled “Consideration of the matters to be addressed by the Conference of the Parties to the Agreement at its first meeting and additional matters, as identified by the Preparatory Commission”, in the format of informal working groups, and proceeded with the establishment of three such groups corresponding to the three clusters of issues discussed during its organizational meeting.

25. The informal working groups, facilitated by the Co-Chairs of the Preparatory Commission, met from 14 to 25 April 2025, proceeding with their discussions on the basis of the three aids to discussions and negotiations prepared by the Co-Chairs (A/AC.296/2025/3, A/AC.296/2025/7 and A/AC.296/2025/8) and the three notes by the Secretariat (A/AC.296/2025/4, A/AC.296/2025/5 and A/AC.296/2025/6), as well as guiding questions circulated by the Co-Chairs in advance of the meeting and made available on the website of the Agreement.² Additionally, on 21 and 25 April, the Co-Chairs delivered, in plenary, oral reports on the discussions held in the informal working groups during the first and second weeks, respectively, of the first session, which were also made available on the website of the Agreement.³

26. In considering the way forward in terms of additional documentation to be prepared during the period between the first and second sessions of the Preparatory Commission on the issues falling under item 5, the Co-Chairs undertook to prepare revised versions of the three aids to discussions and negotiations for consideration by the Commission at its second session, addressing the rules of procedure of the Conference of the Parties, the financial rules governing the funding of the Conference of the Parties and the funding of the secretariat and any subsidiary bodies, as well as arrangements with the Global Environment Facility (GEF) to give effect to the relevant provisions on funding. The Co-Chairs also invited delegations to provide any additional input in writing by the deadline indicated.⁴

27. With regard to the terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies and the selection process for the members of the Scientific and Technical Body and the other subsidiary bodies, the Co-Chairs were requested to produce a matrix outlining, for each subsidiary body, in a comparative format, potential and non-exhaustive options, reflecting input provided during the discussions, to help with visualizing the state of discussions and to provide an aid to assist States in working further towards convergence on those issues.

28. Furthermore, the Secretariat was requested to prepare a document on the arrangements for the secretariats of selected instruments representative of each of the models outlined in the note prepared by the Secretariat for the first session (A/AC.296/2025/5). In this regard, it was agreed that the document would take the form of a matrix to allow for the comparison of each model and would provide factual information, without containing any recommendations, analysis or assessment of the merits of the various models.

29. Lastly, with respect to issues pertaining to the operation of the Clearing-House Mechanism, the Co-Chairs, taking into account the input provided during the session, were requested to prepare draft terms of reference for a group involving experts. The Co-Chairs invited delegations wishing to further inform the preparation of the draft

² See <https://www.un.org/bbnjagreement/sites/default/files/2025-04/20250325GuidingQuestionsFinal.pdf>.

³ Available at <https://www.un.org/bbnjagreement/en/meetings/preparatory-commission/documents/first-session>.

⁴ Available at <https://www.un.org/bbnjagreement/en/prepcom-i-statements-and-written-input>.

terms of reference to provide written input within the timeline indicated.⁵ Additionally, the Secretariat was requested to prepare a flow chart outlining the functions of the Mechanism and its possible linkages with other institutional arrangements established under the Agreement.

30. On 24 April, the Preparatory Commission held, in plenary, a preliminary exchange of views on matters to be considered under item 5 at its second session, in accordance with its programme of work.

31. The Co-Chairs of the Preparatory Commission issued a statement at the closing of the first session (A/AC.296/2025/9).

3. Second session

32. The second session of the Preparatory Commission was held from 18 to 29 August 2025.

33. At the beginning of the session, on 18 August, the Co-Chairs of the Preparatory Commission and the Under-Secretary-General for Legal Affairs and United Nations Legal Counsel delivered opening remarks.

34. In line with the approach taken at its first session, the Preparatory Commission considered item 5 of the agenda, in the format of informal working groups. Informal consultations were also held to help advance discussions on some of the issues considered under agenda item 5.

35. The informal working groups, facilitated by the Co-Chairs, met from 18 to 29 April 2025, with parallel meetings held on 18, 20 to 22, 26 and 27 August.

36. Discussions in the informal working groups proceeded on the basis of three revised aids to discussions and negotiations prepared by the Co-Chairs (A/AC.296/2025/12, A/AC.296/2025/13 and A/AC.296/2025/14), two notes by the Co-Chairs (A/AC.296/2025/15 and A/AC.296/2025/INF/3⁶), four notes by the Secretariat (A/AC.296/2025/16, A/AC.296/2025/17, A/AC.296/2025/18 and A/AC.296/2025/INF/4⁷), as well as guiding questions circulated by the Co-Chairs in advance of the meeting⁸ and a number of documents circulated during the session.

37. With regard to the rules of procedure for the Conference of the Parties, the Preparatory Commission completed a reading of the revised aid to discussions and negotiations prepared by the Co-Chairs (A/AC.296/2025/12). It subsequently completed a reading of the refreshed text of draft rules of procedure for the Conference of the Parties (A/AC.296/2025/CRP.3), issued during the session. On the way forward, the Co-Chairs were requested to prepare a further revised aid for consideration by the Commission at its third session, taking into account the input received during the second session. To inform the preparation of the further revised aid, delegations were invited to provide their input in writing by the deadline indicated.⁹

38. The Preparatory Commission also considered the matrix on the terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies established under the Agreement, contained in a note prepared by

⁵ Ibid.

⁶ See www.un.org/bbnjagreement/sites/default/files/2025-07/20250718BBNJSubBodiesMatrix_0.pdf.

⁷ See www.un.org/bbnjagreement/sites/default/files/2025-07/20250718SecArrangementsMatrix.pdf.

⁸ See <https://www.un.org/bbnjagreement/sites/default/files/2025-07/20250729BBNJPrepComIIGuidingQuestions.pdf>.

⁹ Available at <https://www.un.org/bbnjagreement/en/prepcom-ii-statements-and-written-input>.

the Co-Chairs on the matter (A/AC.296/2025/INF/3). During the session, the Co-Chairs issued a working document containing draft model terms of reference and modalities for the operation of the Scientific and Technical Body established under the Agreement. On the way forward, the Co-Chairs were requested to develop, during the intersessional period, a consolidated aid to negotiations with regard to the Scientific and Technical Body and the other subsidiary bodies, for consideration at the third session of the Commission.

39. Regarding arrangements for the functioning of the secretariat, including its seat, deliberations began on the basis of the matrix on the arrangements for the secretariats of selected instruments representative of each of the secretariat models, contained in a note prepared by the Secretariat in advance of the session (A/AC.296/2025/INF/4). A Co-Chairs' document, entitled "Overview of proposed elements for arrangements for the functioning of the secretariat", was circulated during the session. The Co-Chairs were requested to consult with the Secretariat on the most efficient and appropriate way to obtain information on the various elements discussed during the session, including concerning the implications of a potential link between the secretariat to be established under article 50 of the Agreement and the United Nations. With regard to the selection of the seat of the secretariat, following an exchange of views held in the format of informal informals, the Co-Chairs were requested to invite States interested in hosting the secretariat to provide information on their offer, having regard to the elements discussed during the session, and to make that information available to delegations sufficiently in advance of the third session.

40. Discussions on arrangements to enhance cooperation with relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies, proceeded on the basis of a note prepared by the Secretariat (A/AC.296/2025/16). The deliberations of the Preparatory Commission on the matter were also informed by the input from relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies, which had been received in response to an open call issued by the Division ahead of the second session to collect information with regard to the nature, scope and modalities of existing cooperative arrangements that could be of relevance for future cooperative arrangements under the Agreement.¹⁰ With regard to the way forward, the Co-Chairs, taking into account those discussions and any additional input from delegations after the session by the deadline indicated,¹¹ were requested to prepare a draft decision providing guidance on cooperation with relevant instruments, frameworks and bodies, for consideration at the third session of the Commission.

41. On reporting requirements pursuant to the Agreement, the Preparatory Commission held an exchange of views on the basis of a note prepared by the Secretariat on the matter (A/AC.296/2025/17). The Co-Chairs were requested to distil the discussions on the matter into key points on reporting, to be conveyed to the Conference of the Parties.

42. Concerning the modalities for the operation of the Clearing-House Mechanism, the Preparatory Commission completed a reading of the draft terms of reference for an informal group on the technical aspects of the operationalization of the Mechanism, contained in a note prepared by the Co-Chairs in advance of the meeting (A/AC.296/2025/15). During the session, revised draft terms of reference (A/AC.296/2025/CRP.2) were issued and considered by the Commission, including through a focus group, co-facilitated by Barbados and the United Kingdom of Great Britain and Northern Ireland, on the size and composition of such an informal group. As the focus group did not reach a conclusion, and with a view to delivering on the

¹⁰ Available at <https://www.un.org/bbnjagreement/en/prepcom-ii-afb-cooperation>.

¹¹ Available at <https://www.un.org/bbnjagreement/en/prepcom-ii-statements-and-written-input>.

tasks expected to be completed by the third session of the Commission to support the operationalization of the Clearing-House Mechanism, the Co-Chairs were requested to work with the Secretariat and consult with the Bureau on the modalities for moving forward.

43. With regard to the financial rules governing the funding of the Conference of the Parties and the funding of the secretariat and any subsidiary bodies, the Preparatory Commission completed a reading of the revised aid to discussions and negotiations prepared by the Co-Chairs in advance of the meeting ([A/AC.296/2025/13](#)). It subsequently considered a refreshed text of draft financial rules ([A/AC.296/2025/CRP.4](#)), issued during the session. With regard to the way forward, the Commission requested that the Co-Chairs, taking into account the input received during the second session and any additional input from delegations during the intersessional period, by the deadline indicated,¹² prepare a further revised aid for consideration by the Commission at its third session.

44. Regarding arrangements with GEF to give effect to the relevant provisions on funding, the Preparatory Commission completed a reading of the revised aid to discussions and negotiations prepared by the Co-Chairs concerning a draft memorandum of understanding between the Conference of the Parties and the GEF Council ([A/AC.296/2025/14](#)). It subsequently considered the refreshed text of a draft memorandum of understanding ([A/AC.296/2025/CRP.1](#)), issued during the session. On the way forward, the Co-Chairs were requested to prepare a further revised aid for consideration by the Commission at its third session. To inform its preparation, delegations were invited to submit input in writing by the deadline indicated.¹³

45. The Preparatory Commission considered the operationalization of provisions on financial resources and mechanism other than the arrangements with GEF on the basis of a note prepared by the Secretariat ([A/AC.296/2025/18](#)). Regarding the special fund, the deliberations further proceeded on the basis of a Co-Chairs' document, entitled "Possible elements of a process for the operationalization of the special fund", which was circulated during the session. Regarding the way forward, the Co-Chairs were requested to prepare a draft decision of the Conference of the Parties for the purpose of operationalizing the special fund. With regard to the voluntary trust fund, a preliminary exchange of views was held on a Co-Chairs' document, entitled "Draft elements for the terms of reference of the voluntary trust fund established under the Agreement", circulated during the session, including regarding the interplay between this issue and the draft financial rules and other issues under consideration. The Commission also exchanged preliminary views on the scale of assessed contributions, as well as on guidance on overall strategies, policies, programme priorities and eligibility for access to and utilization of financial resources, on the understanding that further discussions would be required on both matters.

46. Under agenda item 7, entitled "Other matters", the Preparatory Commission, meeting in a plenary setting, held an initial exchange of views and subsequently considered the possibility for the Commission to provide provisional guidance to GEF for the interim period until the Conference of the Parties is able to provide guidance on overall strategies, policies, programme priorities and eligibility for access to and utilization of financial resources, as foreseen in article 52 (9), of the Agreement. Discussions proceeded on the basis of a Co-Chairs' document, entitled "Elements of possible provisional guidance to the Global Environment Facility ninth replenishment process", circulated during the session, and concluded that the Co-Chairs, in

¹² Ibid.

¹³ Ibid.

consultation with the Bureau, would reflect on the way forward, bearing in mind the timeline for the GEF ninth replenishment process.¹⁴

47. The Co-Chairs issued a statement at the closing of the second session of the Preparatory Commission ([A/AC.296/2025/19](#)).

4. Third session

48. The third session of the Preparatory Commission was held from 23 March to 2 April 2026.

49. In accordance with paragraph 8 of resolution [78/272](#), after 20 September 2025 or the date of entry into force of the Agreement, whichever came earlier, the taking of decisions by the Preparatory Commission was to be only by States and regional economic integration organizations that had signed the Agreement or had ratified, approved, accepted or acceded to the Agreement.

50. At the beginning of the session, on 23 March, the Co-Chairs of the Preparatory Commission and the Assistant Secretary-General for Legal Affairs, Steven Hill, delivered opening remarks.

51. Regarding the dates of the first meeting of the Conference of the Parties, the Co-Chairs informed the Preparatory Commission that, pursuant to General Assembly resolution [80/107](#), and following consultations with the Bureau, they would recommend to the Secretary-General that the first meeting be convened from 11 to 22 January 2027, at United Nations Headquarters.

52. The Co-Chairs proposed an oral revision to the agenda of the Preparatory Commission, which was adopted. The revised agenda ([A/AC.296/2025/1/Rev.1](#)) was issued on 24 March 2026.

53. The Preparatory Commission, meeting in the format of informal working groups, continued its consideration of item 5 of the agenda.

54. The informal working groups, facilitated by the Co-Chairs, met from 23 March to 1 April 2026, with parallel meetings held each day, and with regular reporting back to the plenary on the work of the parallel meetings. During the session, a number of informal informals were also held to help advance discussions on issues under agenda item 5.

55. Discussions in informal working groups proceeded on the basis of three further revised aids to discussions and negotiations prepared by the Co-Chairs ([A/AC.296/2026/1](#), [A/AC.296/2026/2](#) and [A/AC.296/2026/7](#)), two aids to discussions and negotiations also prepared by the Co-Chairs ([A/AC.296/2026/3](#) and [A/AC.296/2026/5](#)), a draft decision of the Conference of the Parties prepared by the Co-Chairs ([A/AC.296/2026/4](#)), a note by the Co-Chairs ([A/AC.296/2026/6](#)), a note by the Secretariat ([A/AC.296/2026/8](#)), as well as a number of documents issued or circulated during the session. The Commission also heard presentations by States offering to host the secretariat to be established under article 50 of the Agreement, namely Belgium, Chile and China, each followed by a question-and-answer segment, during which those States responded to questions from delegations.¹⁵

¹⁴ In the period between the second and third sessions of the Commission, the Co-Chairs, following consultations with the Bureau, communicated general provisional guidance to the Chief Executive Officer and Chairperson of the Global Environment Facility (GEF) to inform the process of the ninth replenishment of the GEF trust fund with regard to support related to the Agreement.

¹⁵ Information on host country offers is available at <https://www.un.org/bbnjagreement/en/third-session-23-march-2-april-2026>.

56. With regard to the rules of procedure for the Conference of the Parties, the Preparatory Commission completed a reading of the further revised aid to discussions and negotiations prepared by the Co-Chairs (A/AC.296/2026/1). It subsequently completed a reading of the draft rules of procedure for the Conference of the Parties (A/AC.296/2026/CRP.1), issued during the session. A revised version of the draft rules (A/AC.296/2026/CRP.1/Rev.1) was subsequently issued for consideration by the Commission. This included text on draft rule 39 bis (draft rule 41 of annex I to the present report), which had been the subject of informal informals, with the Co-Chairs noting that, in their view, the text presented in the revised version reflected the best prospect of garnering widespread support. At the final meeting of the Commission, on 2 April 2026, under agenda item 8, entitled “Adoption of the report of the Preparatory Commission”, following further consultations among delegations, the Commission agreed to amend the document. In respect of draft rule 6 (draft rule 8 of annex I to the present report), paragraph 2 (c), additional text was added at the end of the paragraph to read: “..., such decision being a decision on a question of procedure under rule 47 of the present rules”. Draft rule 34, paragraph 2, was amended to read: “Quorum shall be determined on the basis of the number of votes that are entitled to be cast on a decision.” Draft rule 44 (draft rule 46 of annex I to the present report) was amended to read: “The rights of the Parties to vote are as provided for in article 64 of the Agreement.” The draft rules of procedure recommended by the Commission to the Conference of the Parties for consideration, are contained in annex I to the present report.

57. At the final meeting of the Preparatory Commission on 2 April 2026, under agenda item 8, a number of States that have signed the Agreement or have ratified, approved, accepted or acceded to it, namely, Brazil,¹⁶ Japan,¹⁷ Indonesia,¹⁸ Chile,¹⁹

¹⁶ With respect to draft rule 39 bis (draft rule 41 of annex I to the present report), Brazil reiterated that, in its view, the inclusion of such a rule was of critical importance, in order to effectively operationalize article 18 of the Agreement. It noted that there had not been sufficient time to consider the proposed text and reserved its right to revert to this matter in due course, bearing in mind that the final decision rested with the Conference of the Parties.

¹⁷ Japan reserved its position on draft rule 44 (draft rule 46 of annex I to the present report), paragraph 2; draft rule 34, paragraph 2; and draft rule 51 (draft rule 53 of annex I to the present report), paragraph 1. It requested that the following be re-inserted at the end of draft rule 51 (draft rule 53 of annex I to the present report), paragraph 1: “Any Party may request a secret ballot. The President shall ask whether the request is seconded. If it is seconded by 10 or more Parties, the vote shall be by secret ballot.”

¹⁸ Indonesia objected to the formulation in draft rule 6 (draft rule 8 of annex I to the present report), paragraph 1, regarding Indigenous Peoples and local communities, noting that it deviated from, or was inconsistent with, the formulation in article 48, paragraph 4, of the Agreement.

¹⁹ Chile noted that there had not been sufficient time to consider the proposed wording for draft rule 39 bis (draft rule 41 of annex I to the present report) and reserved its right to revert to draft rule 39 bis (draft rule 41 of annex I to the present report) in due course, noting that it understood that the operationalization of article 18 should also be considered in the respective coordination of the effective use of this rule in the context of proposals for the establishment of area-based management tools.

Türkiye,²⁰ the Philippines,²¹ Egypt,²² India²³ and Argentina,²⁴ made statements in explanation of position concerning the draft rules of procedure before the adoption of the report. Some of those States indicated that further efforts would be needed to ensure the adoption of the rules of procedure by consensus at the first meeting of the Conference of the Parties, consistent with the Agreement. Two States that have not signed the Agreement and have not ratified, approved, accepted or acceded to it, namely, El Salvador²⁵ and Saudi Arabia,²⁶ also expressed their views concerning the draft rules of procedure before the adoption of the report. Paraguay, on behalf of a group of landlocked developing countries, also made a statement.²⁷

58. On the terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies, including the selection process for their

²⁰ On draft rule 6 (draft rule 8 of annex I to the present report), paragraph 2 (c), Türkiye supported maintaining the principle of the non-objection procedure. On draft rule 44 (draft rule 46 of annex I to the present report), paragraph 2, it reiterated its preference for the retention of the bracketed text “present and voting”. On draft rule 51 (draft rule 53 of annex I to the present report), paragraph 1, it expressed concern that the latest version of the text omitted any reference to the possibility of a secret ballot and that the support expressed for maintaining a low threshold for seconding requests had not been reflected in the text.

²¹ The Philippines observed that the rules of procedures remained subordinate to the Agreement, which meant they could not alter, reinterpret or condition the substantive balance reflected in the Agreement. It further noted its understanding that any reference to article 18 of the Agreement in the rules of procedure did not create new rights, did not introduce any form of veto or a blocking effect and did not preclude the Conference of the Parties from considering matters within its mandate. It considered that any relevant notifications should be understood as contributing to transparency without affecting the ability of the Conference of the Parties to proceed in accordance with the Agreement.

²² In respect of draft rule 34, Egypt stated that it saw merit in having a quorum of two thirds of the Parties in order to take a decision. In respect of draft rule 39 bis (draft rule 41 of annex I to the present report), it noted the importance of having clarity on its relation to article 18 of the Agreement. In respect of draft rule 44 (draft rule 46 of annex I to the present report), it noted that the inclusion of the qualifier “present and voting” was of paramount importance.

²³ India stated that the current formulations of draft rule 39 bis (draft rule 41 of annex I to the present report) and draft rule 60 (draft rule 62 of annex I to the present report) exceeded the scope of articles 18 and 47 of the Agreement, respectively, and reserved its right to come back on the text in due course.

²⁴ With regard to draft rule 34 and draft rule 44 (draft rule 46 of annex I to the present report), Argentina stated that the provisions on the determination of quorum and voting should include the phrase “present and voting”. It reserved its position on draft rule 39 bis (draft rule 41 of annex I to the present report), noting that there needed to be more correlation between paragraphs 2 and 3 to be able to conclude that it would not be possible for the Conference of the Parties to take decisions on proposals that had been objected to. It noted that it also had not had time to consider alternatives to the deletion of references to article 6 of the Agreement in section IV of the draft rules of procedure, for example, a chapeau or an additional rule that would refer to article 6.

²⁵ El Salvador reiterated its view concerning the importance of the operationalization of article 18 of the Agreement through draft rule 39 bis (draft rule 41 of annex I to the present report) of the rules of procedure. It noted that it continued to consider that all States, whether or not they were Party to the Agreement, could object to the establishment of measures such as area-based management tools, including marine protected areas, in areas under national jurisdiction where there were claims to sovereignty, sovereign rights or jurisdiction, including in respect of any disputes relating thereto, pursuant to article 18 of the Agreement.

²⁶ Saudi Arabia expressed its reservation concerning several provisions of the draft rules of procedure, in particular draft rule 34, draft rule 44 (draft rule 46 of annex I to the present report), draft rule 39 bis (draft rule 41 of annex I to the present report) and draft rule 60 (draft rule 62 of annex I to the present report), requesting the retention of the previous texts of those draft rules.

²⁷ Paraguay requested the inclusion of a seat in the Bureau for landlocked developing countries in draft rule 22 (draft rule 25 of annex I to the present report), paragraph 2, in line with article 7 (n), of the Agreement.

members, the Preparatory Commission completed a reading of the aid to discussions and negotiations prepared by the Co-Chairs (A/AC.296/2026/3). The Commission then considered the draft terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies (A/AC.296/2026/CRP.2), which was issued during the session. A revised version of the document (A/AC.296/2026/CRP.2/Rev.1 and A/AC.296/2026/CRP.2/Rev.1/Corr.1) was subsequently issued for consideration by the Commission. The draft document recommended by the Commission to the Conference of the Parties for consideration is contained in annex II to the present report. Additionally, during the session, strong interest was expressed by several groups and delegations with regard to considering the question of the establishment of an advisory mechanism on Indigenous Peoples, local communities, and traditional knowledge at the first meeting of the Conference of Parties, and a group undertook to carry out intersessional work in that regard.²⁸

59. With regard to arrangements for the functioning of the secretariat, including its seat, the Preparatory Commission began its discussions on the basis of a note prepared by the Secretariat on the matter (A/AC.296/2026/8). A Co-Chairs' non-paper on arrangements for the functioning of the secretariat established under the Agreement was circulated during the session. The Commission subsequently considered a draft decision of the Conference of the Parties concerning the relationship of the secretariat established under article 50 of the Agreement and the United Nations (A/AC.296/2026/CRP.8). At the final meeting of the Commission, on 2 April 2026, under agenda item 8, the draft decision was amended following further consultations among delegations. Paragraph 5 under option I, or paragraph 3 under option II, was amended to read: "... the head of the secretariat shall serve for a four-year term...". The draft decision recommended by the Commission to the Conference of the Parties for consideration is contained in annex III to the present report. Regarding the selection of the seat of the secretariat, the Commission considered a draft decision for consideration by the Conference of the Parties at its first meeting on modalities for the decision on the seat of the secretariat issued during the session (A/AC.296/2026/CRP.9). The draft decision recommended by the Commission to the Conference of the Parties for consideration is contained in annex IV to the present report. The Commission also decided, without prejudice to the final decision of the Conference of the Parties on the type of relationship that might be established between the United Nations and the secretariat, to request the Secretary-General to propose, in advance of the first meeting of the Conference of the Parties, arrangements for consideration at that meeting, outlining the scope of administrative support that could be provided by the United Nations, and requested the Co-Chairs to convey that request by letter. Draft excerpts of such a letter were discussed during the session.

60. Concerning the modalities for the operation of the Clearing-House Mechanism, the Preparatory Commission considered a consolidated draft study on the technical aspects of the operationalization of the Clearing-House Mechanism, prepared through a consultancy under the supervision of the Division and circulated to delegations in advance of the session. A number of informal informals, co-facilitated by Palau and New Zealand, were held during the session to explore the way forward, including to identify possible work to be carried out during the period following the conclusion of the third session and in the lead-up to the first meeting of the Conference of the Parties. A document was prepared in that context to reflect the outcome of those informal informals.²⁹ The Commission decided to entrust the Co-Chairs with the

²⁸ See the proposal submitted by the Pacific small island developing States, available at https://www.un.org/bbnjagreement/sites/default/files/2025-12/PSIDS_AdvMechIPLCAndTK_13Dec.pdf.

²⁹ Available at <https://www.un.org/bbnjagreement/sites/default/files/2026-04/CHMInformalDiscussionOutcome.pdf>.

undertaking of further intersessional work, to be carried out under the Co-Chairs' authority, in consultation with the Bureau and with the support of the Division, taking into consideration the aforementioned document, and to report thereon to the Conference of the Parties at its first meeting.

61. On the financial rules governing the funding of the Conference of the Parties and the funding of the secretariat and any subsidiary bodies, the Preparatory Commission completed a reading of the further revised aid to discussions and negotiations prepared by the Co-Chairs ([A/AC.296/2026/2](#)). The Commission then considered the draft financial rules ([A/AC.296/2026/CRP.3](#)), issued during the session. A revised version of the draft rules ([A/AC.296/2026/CRP.3/Rev.1](#) and [A/AC.296/2026/CRP.3/Rev.1/Corr.1](#)) was subsequently issued for consideration by the Commission. The draft financial rules recommended by the Commission to the Conference of the Parties for consideration are contained in annex V to the present report.

62. Regarding arrangements with GEF to give effect to the relevant provisions on funding, the Preparatory Commission completed a reading of the further revised aid to discussions and negotiations prepared by the Co-Chairs concerning a draft memorandum of understanding between the Conference of the Parties and the GEF Council ([A/AC.296/2026/7](#)). The Commission then considered the draft memorandum of understanding ([A/AC.296/2026/CRP.4](#)), issued during the session. A revised version of the draft memorandum ([A/AC.296/2026/CRP.4/Rev.1](#) and [A/AC.296/2026/CRP.4/Rev.1/Corr.1](#)) was subsequently issued for consideration by the Commission. The draft memorandum of understanding recommended by the Commission to the Conference of the Parties for consideration and to be forwarded to the GEF Council for the latter's consideration, prior to its consideration by the Conference of the Parties, is contained in annex VI to the present report.

63. Concerning arrangements to enhance cooperation with relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies, the Preparatory Commission completed a reading of a draft decision of the Conference of the Parties prepared by the Co-Chairs ([A/AC.296/2026/4](#)). Subsequently, the Commission considered a revised draft decision ([A/AC.296/2026/CRP.6](#)), issued during the session. A further revised draft decision ([A/AC.296/2026/CRP.6/Rev.1](#)) was subsequently issued for consideration by the Commission. The draft decision recommended by the Commission to the Conference of the Parties for consideration is contained in annex VII to the present report.

64. With regard to the operationalization of provisions on financial resources and mechanism other than those related to arrangements between the Conference of the Parties and GEF, the Preparatory Commission began its discussions on the basis of the aid to discussions and negotiations prepared by the Co-Chairs concerning the establishment of the voluntary trust fund as part of the financial mechanism ([A/AC.296/2026/5](#)) and the note by the Co-Chairs concerning a draft decision of the Conference of the Parties for the purpose of operationalizing the special fund ([A/AC.296/2026/6](#)). The Commission then completed a reading of the draft decision for the purpose of operationalizing the special fund, circulated during the session. A revised version of the draft decision ([A/AC.296/2026/CRP.11](#)) was subsequently issued for consideration by the Commission. Further informal consultations on the document were conducted among delegations, during which further convergence was reached on the text of the draft decision and subsequently communicated to the Co-Chairs.³⁰ The draft decision recommended by the Commission to the Conference of the Parties for consideration is contained in annex VIII to the present report.

³⁰ The outcome of these informal consultations, as conveyed to the Co-Chairs, is that the bracketed text in paragraphs 8 and 9 of the draft decision would be removed.

Regarding the voluntary trust fund, the Commission completed a reading of the draft text of potential terms of reference. It then considered the draft terms of reference for the voluntary trust fund under the Agreement (A/AC.296/2026/CRP.10), which were issued during the session. Further informal consultations were conducted among delegations on the document, during which further convergence was reached on the text of the draft decision and subsequently communicated to the Co-Chairs.³¹ The draft terms of reference recommended by the Commission to the Conference of the Parties for consideration are contained in annex IX to the present report.

65. On reporting requirements under the Agreement, the Co-Chairs informed delegations that, as requested by the Preparatory Commission at its second session, they had distilled the discussions on the matter held during that session into key points to be conveyed to the Conference of the Parties. Accordingly, a document containing key elements on reporting requirements under the Agreement (A/AC.296/2026/CRP.7) was issued. The document recommended by the Commission to the Conference of the Parties for consideration is contained in annex X to the present report.

66. At the final meeting of the Preparatory Commission on 2 April 2026, under item 8 of the agenda, one State that has not signed the Agreement and has not ratified, approved, accepted or acceded to it, namely the Islamic Republic of Iran, expressed its views concerning the documents before the adoption of the report of the Commission, requesting that its statement be included in the report.³²

III. Credentials

67. At the organizational meeting and the first and second substantive sessions, the Preparatory Commission decided to postpone the consideration of the appointment of the Credentials Committee under agenda item 4, entitled “Appointment of members of the Credentials Committee”, to a later time. As a result, consideration of agenda item 6, “Credentials of representatives”, was also postponed.

³¹ The outcome of these informal consultations among delegations, as conveyed to the Co-Chairs, is as follows: the brackets in paragraph 5 would be removed; the wording in paragraph 6 would be amended to read “... up to two representatives for each developing State Party, in particular least developed countries, landlocked developing countries and small island developing States, ...”; and subparagraph (a) of paragraph 9 would be moved to the end of paragraph 10.

³² The Islamic Republic of Iran noted that it could not support certain provisions in the documents presented to the Preparatory Commission. In its view, given the modalities set out in General Assembly resolution 78/272, no report, outcome or deliberation of the meeting could be construed as to prejudice the principled positions of the Islamic Republic of Iran in relation to the United Nations Convention on the Law of the Sea or its positions on other contentious matters, including those in relation to rules of procedure, various financial rules and terms of references, and arrangements with GEF, among others. It further noted that contentious matters that had been referred to in the documents of the Commission or were not consistent with the position of its delegation could not be considered as setting precedent for any other forum or as support of or acceptance of such matters by its delegation, these including, but not being limited to, matters related to the participation of observers, in particular non-governmental organizations and other similar entities, virtual meetings, certain aspects of financial rules, emergency measures, voting for regional economic integration organizations, terms of references and cooperation with other relevant legal instruments. It reiterated its position regarding the Convention and re-emphasized that the participation of its delegation in the work of the Commission or the documents of the Commission, including the decision contained in document A/AC.296/2026/CRP.6/Rev.1, in particular draft preambular paragraph 2, did not affect or prejudice the legal status, rights or prerogatives of the Islamic Republic of Iran as a non-party to the Convention or any other related agreements with regard to that Convention and could not prejudice its sovereign rights in any manner.

68. At its third session, the Preparatory Commission, under item 4 of the agenda, decided to entrust the Co-Chairs, with the support of the Secretariat, to review the credentials of representatives to the Preparatory Commission and to report thereon to the Commission.

69. On 1 and 2 April 2026, the Commission heard, under item 6 of the agenda, the oral reports of the Co-Chairs on the review of the credentials of representatives to the Preparatory Commission, noting that formal credentials had been received from a total of 100 States and from the European Union, of which 91 were from States and one from the regional economic integration organization having signed the Agreement or having ratified, approved, accepted or acceded to it. Information concerning the appointment of representatives to the Commission communicated to the Secretary-General by means of a copy of formal credentials signed by the Head of State or Government or the Minister for Foreign Affairs, or by means of a letter or note verbale from the Permanent Mission concerned, had been received from a total of 50 States, of which 39 were from States that had signed the Agreement or had ratified, approved, accepted or acceded to it. The Commission took note of the oral reports of the Co-Chairs and of the information presented.

IV. Attendance

70. Participants in the sessions of the Preparatory Commission included representatives of 161 States Members of the United Nations, members of the specialized agencies and Parties to the United Nations Convention on the Law of the Sea. In addition, 33 organizations and other entities that have received a standing invitation to participate as observers in the work of the General Assembly pursuant to its relevant resolutions, relevant specialized agencies and other organs, organizations, funds and programmes of the United Nations system, interested global and regional intergovernmental organizations and other interested international bodies, as well as 100 non-governmental organizations, participated as observers.

V. Recommendations of the Preparatory Commission

71. At its third session, on 2 April 2026, the Preparatory Commission decided to recommend to the Conference of the Parties to the Agreement, for consideration at its first meeting, the documents contained in annexes I to X to the present report.

VI. Other matters

72. In paragraph 14 of resolution [78/272](#), the General Assembly requested the Secretary-General to continue to administer the voluntary trust fund established pursuant to resolution [69/292](#) for the purpose of assisting developing countries, in particular the least developed countries, landlocked developing countries and small island developing States, in attending the meetings of the Preparatory Commission, and authorized the Secretary-General to expand the assistance provided by the trust fund to include daily subsistence allowance in addition to defraying the costs of economy-class travel, limiting requests for assistance from the trust fund to one delegate per State for each meeting of the Commission. The General Assembly also invited Member States, international financial institutions, donor agencies, intergovernmental organizations, non-governmental organizations and natural and juridical persons to make financial contributions to the voluntary trust fund. The Secretariat informed the Commission of the status of the voluntary trust fund at the sessions of the Commission. During the sessions, contributions to the voluntary trust

fund were made by the following: Chile, Cyprus, Finland, France, Germany, Greece, Ireland, the Netherlands (Kingdom of the), New Zealand, Norway, Oman, the Philippines, Portugal, the European Union, and the High Seas Alliance. A total of 111 individuals received assistance from the fund to attend the meetings of the Commission.

73. In addition, the Co-Chairs expressed their gratitude to Australia for covering the costs of webcasting services during the second session and parts of the third session.

VII. Adoption of the report of the Preparatory Commission

74. At its third session, on 2 April 2026, the Co-Chairs introduced the draft report of the Preparatory Commission, including its annexes. At its final meeting, held the same day, the Commission adopted its report, as orally amended, without a vote and on the understanding that the Co-Chairs would finalize it after the session.

Annex I

Draft rules of procedure for the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction

I. Scope and definitions

Rule 1

Scope

The present rules of procedure shall apply to any meeting of the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction convened in accordance with article 47 of the Agreement.

Rule 2

Definitions

For the purposes of the present rules:

1. “Agreement” means the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction, adopted in New York on 19 June 2023.
2. “Chair” means Chair or Co-Chairs, as appropriate.
3. “Conference of the Parties” means the Conference of the Parties established under article 47 of the Agreement.
4. “Meeting” means any ordinary or extraordinary meeting of the Conference of the Parties convened in accordance with article 47 of the Agreement.
5. “Parties present and voting” means Parties present at the meeting in which voting takes place and casting an affirmative or negative vote. Parties abstaining from voting shall be considered as not voting.
6. “Party” means a Party as defined in article 1, paragraph 11, of the Agreement.
7. “President” means the President of the Conference of the Parties elected in accordance with paragraphs 1 or 2 of rule 25 of the present rules of procedure.
8. “Regional economic integration organization” means an organization as defined in article 1, paragraph 12, of the Agreement.
9. “Secretariat” means the secretariat established under article 50 of the Agreement.
10. “Subsidiary body” means the Access and Benefit-Sharing Committee,¹ the Capacity-Building and Transfer of Marine Technology Committee,² the Finance

¹ Art. 15, para. 1, of the Agreement.

² Art. 46, para. 1, of the Agreement.

Committee on financial resources,³ the Implementation and Compliance Committee⁴ and the Scientific and Technical Body,⁵ as well as any subsidiary body established pursuant to article 47, paragraph 6 (d), of the Agreement.

II. Meetings

Rule 3

Place of meetings

The Conference of the Parties shall meet at the seat of the secretariat or at United Nations Headquarters, unless the Conference of the Parties decides otherwise.

Rule 4

Modalities of meetings

1. Meetings of the Conference of the Parties shall be held in person.
2. The secretariat shall make arrangements regarding the submission of pre-recorded statements by delegations, unless the Conference of the Parties decides otherwise.
3. Notwithstanding paragraph 1, in the event of exceptional circumstances that render the holding of in-person meetings impracticable, meetings of the Conference of the Parties may be held virtually. Any decision that a meeting of the Conference of the Parties should be held virtually shall be taken by the President, following consultations with the Bureau.
4. Virtual meetings shall be held through modalities that allow for online interactive participation by all Parties on an equitable basis. Such modalities shall be communicated to the Parties and observers in advance of the meeting.
5. The Conference of the Parties shall not take decisions at virtual meetings, except as otherwise provided for in rule 5 and decisions on budgetary matters and matters that are necessary to allow the secretariat, the Conference of the Parties and its subsidiary bodies to continue to function.
6. The President may propose that the Conference of Parties take the decisions set out in paragraph 5, and the modalities for taking such decisions, following consultations with the Bureau.
7. The Conference of Parties may adopt guidance regarding the convening and modalities of virtual meetings.

Rule 5

Intersessional decision-making in respect of emergency measures

1. Subject to any consultation pursuant to article 24, paragraph 2, of the Agreement, and to procedures and guidance elaborated by the Scientific and Technical Body and adopted by the Conference of the Parties pursuant to article 24, paragraph 5, of the Agreement, in case of the proposed adoption of emergency measures intersessionally pursuant to article 24, paragraph 3, of the Agreement, the President, in consultation with the Bureau, may call a virtual meeting of the Conference of the Parties so that a decision on an emergency measure can be taken by the Conference of the Parties.

³ Art. 52, para. 14, of the Agreement.

⁴ Art. 55, para. 1, of the Agreement.

⁵ Art. 49, para. 1, of the Agreement.

2. When a virtual meeting is called in order to take a decision on an emergency measure, the proposed emergency measure, together with a statement by the President stating that the decision is to be taken in a virtual meeting and the date and time and other technical details of the virtual meeting, shall be distributed by the secretariat to the Parties at least 30 days before the virtual meeting is due to commence.

Rule 6

Date of meetings

1. The initial ordinary meetings of the Conference of the Parties shall be held on an annual basis and shall, thereafter, be held every two years. The Conference of Parties shall, by no later than its fifth ordinary meeting, decide upon the date from which ordinary meetings will be held on a biennial basis. Such a decision may be deferred once only to the next ordinary meeting.

2. At each ordinary meeting, the Conference of the Parties shall decide on the date, duration and venue of the next ordinary meeting. The Conference of the Parties should endeavour not to hold such meetings at a time that would make the attendance of a significant number of delegations difficult.

3. Extraordinary meetings of the Conference of the Parties shall be held at such times as may be decided either by a majority of the Parties present and voting at an ordinary meeting of the Conference of the Parties or at the written request of any Party, provided that, within 90 days of the request being communicated to the Parties by the secretariat, it is supported by at least a majority of the Parties.

4. In the case of an extraordinary meeting held at the written request of a Party, it shall be held not more than 90 days after the date on which the request is supported by at least a majority of the Parties, in accordance with paragraph 3 of the present rule.

Rule 7

Notification of meetings

The secretariat shall notify all Parties of the dates and venue of ordinary and extraordinary meetings at least 60 days before the meeting in question is due to commence. For extraordinary meetings, this time period may be shortened to 30 days.

III. Observers

Rule 8

Observers

1. Subject to paragraphs 2 and 3 of the present rule, representatives of the following may participate as observers in the meetings of the Conference of the Parties and of its subsidiary bodies in accordance with article 48, paragraph 4, of the Agreement:

- (a) States not Party to the Agreement;
- (b) Relevant global, regional, subregional and sectoral bodies;
- (c) Indigenous Peoples with relevant traditional knowledge;
- (d) Local communities with relevant traditional knowledge;
- (e) The scientific community;
- (f) Civil society organizations and other relevant stakeholders with an interest in matters pertaining to the Conference of the Parties.

2. Representatives of States, bodies, entities and stakeholders listed in paragraph 1 of the present rule shall be accredited as observers through the following procedures:

(a) Representatives of States falling under subparagraph (a) are entitled to participate as observers subject to prior written notification to the head of the secretariat;

(b) Representatives of bodies falling under subparagraph (b) may request to participate as observers. Such requests shall be accorded unless at least two thirds of the Parties object;

(c) Representatives of entities and stakeholders falling under subparagraphs (c) to (f) may request to participate as observers. Subject to paragraph 3 of the present rule, the secretariat shall circulate to the Parties a list of such entities and stakeholders at least 30 days prior to the meeting of the Conference of the Parties that follows the submission of the request, for their consideration on a non-objection basis, following which a final decision will be made by the Conference of Parties on participation, such decision being a decision on a question of procedure under rule 47 of the present rules.⁶

3. Notwithstanding paragraph 2 of the present rule, representatives of the following bodies, entities and stakeholders are entitled to participate as observers in the meetings of the Conference of the Parties and of its subsidiary bodies, subject to prior written notification to the head of the secretariat:

(a) The United Nations, its specialized agencies and related organizations;

(b) Bodies, entities and stakeholders that have a standing invitation from the General Assembly pursuant to its relevant resolutions to participate, in the capacity of observer, in its sessions and work;

(c) Bodies, entities and stakeholders that are in consultative status with the Economic and Social Council in accordance with the provisions of Council resolution 1996/31 of 25 July 1996;

(d) Bodies, entities and stakeholders that were entitled to participate as observers in the intergovernmental conference on an international legally binding instrument under the United Nations Convention on the Law of the Sea on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction or in the Preparatory Commission for the Entry into Force of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction and the Convening of the First Meeting of the Conference of the Parties to the Agreement.

(e) Bodies, entities and stakeholders previously accredited as observers through the procedure set out in paragraph 2 of the present rule.

4. Observers in the meetings of the Conference of the Parties and its subsidiary bodies shall not take part in decision-making. They shall be entitled to:

(a) Attend meetings of the Conference of the Parties and its subsidiary bodies;

(b) Deliver statements at such meetings at the invitation of the President or the Chair of the relevant subsidiary body;

⁶ The list will include both proposed and final names. The general basis of any objections, if requested by one or more Parties, will be made known to the Conference of Parties and the requester.

(c) Receive the documents of the Conference of the Parties and its subsidiary bodies;

(d) Submit their views in writing to the Conference of the Parties and its subsidiary bodies.

5. Participation by representatives of Indigenous Peoples and their organizations in all proceedings of the Conference of the Parties and of its subsidiary bodies shall align with the United Nations Declaration on the Rights of Indigenous Peoples where relevant.

Rule 9

Notification by the secretariat

The secretariat shall notify those entitled to participate as observers and those that have informed the secretariat of their wish to participate as observers, pursuant to rule 8 of the present rules of procedure, of the dates and venue of the next meeting, at least 60 days before the meeting in question is due to commence. For extraordinary meetings, this time period may be shortened to 30 days.

IV. Agenda

Rule 10

Preparation of the provisional agenda

In agreement with the President after consulting with the Bureau, the secretariat shall prepare the provisional agenda of each meeting.

Rule 11

Items on the provisional agenda of ordinary meetings

The provisional agenda of each ordinary meeting shall include, as appropriate:

(a) Items arising from the articles of the Agreement, including those specified in its article 47;

(b) Items the inclusion of which has been decided at a previous meeting;

(c) Items referred to in rule 18 of the present rules of procedure;

(d) The proposed budget and all questions pertaining to accounts and financial arrangements;

(e) Any item proposed by a Party and received by the secretariat before the provisional agenda is circulated.

Rule 12

Distribution of the provisional agenda

For each ordinary meeting, the provisional agenda, together with supporting documents, shall be issued in the official languages of the Conference of the Parties, distributed by the secretariat to the Parties and made available to observers referred to in rule 8 of the present rules at least 45 days before the opening of the meeting.

Rule 13

Supplementary items

The secretariat shall, in agreement with the President after consulting with the Bureau, include any item that is proposed by a Party and has been received by the secretariat after the provisional agenda of an ordinary meeting has been distributed,

but no later than 30 days before the opening of the meeting, in a supplementary provisional agenda.

Rule 14*Addition, deletion, deferment or amendment*

When adopting the agenda of an ordinary meeting, the Conference of the Parties may decide to add, delete, defer or amend items. Only items that are considered by the Conference of the Parties to be urgent and important may be added to the agenda.

Rule 15*Adoption of the agenda*

At each meeting, the provisional agenda and supplementary provisional agenda shall be submitted to the Conference of the Parties for consideration and approval as soon as possible after the opening of the meeting.

Rule 16*Agenda of extraordinary meetings*

The provisional agenda of an extraordinary meeting shall consist of those items proposed for consideration by the Conference of the Parties at an ordinary meeting or in the written request for the holding of the extraordinary meeting. It shall be distributed to the Parties and made available to observers referred to in rule 8 of the present rules at the same time as the notification of the extraordinary meeting.

Rule 17*Report on administrative, budgetary and financial implications*

The secretariat shall report to the Conference of the Parties on the administrative, budgetary and financial implications of all substantive agenda items submitted to the meeting, before they are considered by it. Unless the Conference of the Parties decides otherwise, no such substantive agenda item shall be considered until at least 48 hours after the Conference of the Parties has received a report of the secretariat on its administrative, budgetary and financial implications.

Rule 18*Incomplete consideration of items*

Any item of the agenda of an ordinary meeting, consideration of which has not been completed at the meeting, shall be included automatically in the provisional agenda of the next ordinary meeting, unless otherwise decided by the Conference of the Parties.

V. Representation and credentials

Rule 19*Composition of delegations*

Each Party participating in a meeting shall be represented by a delegation consisting of a head of delegation and such other accredited representatives, alternate representatives and advisers as it may require.

Rule 20*Alternates and advisers*

An alternate representative or an adviser may act as a representative upon designation by the head of delegation.

Rule 21*Submission of credentials*

The credentials of representatives and the names of alternate representatives and advisers shall be submitted to the secretariat, if possible not later than 24 hours after the opening of the meeting. Any later change in the composition of the delegation shall also be submitted to the secretariat. The credentials shall be issued either by the Head of State or Government or by the Minister for Foreign Affairs or any person authorized by either of them, or, in the case of a regional economic integration organization, by the competent authority of that organization.

Rule 22*Examination of credentials*

A Credentials Committee shall be appointed at the beginning of each meeting. It shall consist of nine members, who shall be appointed by the Conference of the Parties on the proposal of the President, after consulting with Parties. The Committee shall elect its own officers. It shall examine the credentials of representatives and report to the Conference of the Parties without delay.

Rule 23*Provisional participation*

Representatives shall be entitled to participate provisionally in the meeting, pending a decision by the Conference of the Parties on their credentials.

VI. Officers**Rule 24***Bureau*

The President and the Vice-Presidents shall constitute the Bureau, which shall meet periodically throughout each meeting to review the progress of the Conference of the Parties and its subsidiary bodies and to make recommendations on such progress. It shall also meet at such other times, including intersessionally, as the President deems necessary or upon the request of any other of its members. The Chairs of the subsidiary bodies may be invited to attend meetings of the Bureau. The Bureau shall have a consultative role through which it shall assist the President in the general conduct of the work of the Conference of the Parties. The Bureau members shall regularly consult with the Parties from their respective groups.

Rule 25*Election of officers*

1. At the commencement of the first ordinary meeting of the Conference of the Parties, a President and 16 Vice-Presidents, one of whom shall act as Rapporteur, shall be elected from among the representatives of the Parties present at the meeting. These officers shall serve as the Bureau of the Conference of the Parties. Each of the five United Nations regional groups shall be represented by three Bureau members. In addition, one Bureau member shall represent the small island developing States and one shall represent the least developed countries. These officers shall be elected

taking into account gender balance, equitable geographical representation and adequate representation of developing countries. They shall remain in office until the closure of the second ordinary meeting of the Conference of the Parties, including for any intervening extraordinary meeting.

2. At the second and subsequent ordinary meetings of the Conference of the Parties, a President and 16 Vice-Presidents, one of whom shall act as Rapporteur, shall be elected from among the representatives of the Parties present at the meeting. These officers shall serve as the Bureau of the Conference of the Parties. Each of the five United Nations regional groups shall be represented by three Bureau members. In addition, one Bureau member shall represent the small island developing States and one shall represent the least developed countries. These officers shall be elected taking into account gender balance, equitable geographical representation and adequate representation of developing countries. They shall commence their term of office at the closure of the meeting at which they are elected and remain in office until the closure of the following ordinary meeting of the Conference of the Parties, including for any intervening extraordinary meeting.

3. The offices of the President and Rapporteur shall be subject to equitable rotation among the United Nations regional groups. Officers shall serve for a maximum of two terms, which may be held consecutively.

4. The President shall participate in meetings of the Conference of the Parties in that capacity and shall not at the same time exercise the rights of a representative of a Party. The Party concerned shall designate another representative, who shall be entitled to represent the Party in the meetings and to exercise the right to vote.

5. The Rapporteur shall, in addition to serving as Vice-President of the Conference of the Parties, be responsible, with the assistance and support of the secretariat, for the preparation of the report of any meeting of the Conference of the Parties, which shall be published, distributed and circulated by the secretariat as an official document of the meeting.

Rule 26

General powers of the President

1. In addition to exercising the powers conferred upon the President elsewhere in the present rules, the President shall declare the opening and closing of the meeting, preside at the meeting, ensure the observance of the present rules, accord the right to speak, put questions to the vote and announce decisions. The President shall rule on points of order and, subject to the present rules, shall have complete control of the proceedings and over the maintenance of order at the meeting.

2. The President may propose to the Conference of the Parties the closure of the list of speakers, a limitation on the time to be allowed to speakers and on the number of times each representative may speak on a question, the adjournment or closure of the debate and the suspension or adjournment of a session.

3. The President, in the exercise of the functions of that office, remains under the authority of the Conference of the Parties.

Rule 27

Acting President

1. The President, if temporarily absent from a meeting or any part thereof, shall designate a Vice-President to act as President. The President so designated shall not at the same time exercise the rights of a representative of a Party.

2. A Vice-President acting as President shall have the powers and duties of the President as set out in rule 26 of the present rules of procedure.

Rule 28

Replacement of an officer

If an officer of the Bureau resigns or is otherwise unable to complete the assigned term of office or to perform the functions of that office, a representative of the same Party shall be named by the Party concerned to replace the said officer for the remainder of that officer's term. If the Party concerned declines to name a replacement, the Conference of the Parties shall elect a representative of the same United Nations regional group, or of the small island developing States or the least developed countries in the case of a Party concerned representing one of these groups, to replace the said officer for the remainder of that officer's term.

VII. Subsidiary bodies

Rule 29

Application of the rules to subsidiary bodies

The rules of procedure of the Conference of the Parties shall apply, mutatis mutandis, to all matters not specifically dealt with under the terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies established under the Agreement.

Rule 30

Establishment of subsidiary bodies

1. The Conference of the Parties may establish, in accordance with article 47, paragraph 6 (d), of the Agreement, such subsidiary bodies as deemed necessary to support the implementation of the Agreement, in addition to the Access and Benefit-Sharing Committee, the Capacity-Building and Transfer of Marine Technology Committee, the Finance Committee on financial resources, the Implementation and Compliance Committee and the Scientific and Technical Body.
2. Rule 29 of the present rules of procedure applies to any additional subsidiary body established in accordance with the present rule.

VIII. Secretariat

Rule 31

Duties of the head of the secretariat

1. The head of the secretariat, or the designated representative of the head of the secretariat, shall exercise the functions of that office in all meetings of the Conference of the Parties and of its subsidiary bodies.
2. The head of the secretariat shall arrange for the provision of staff and services required by the Conference of the Parties and its subsidiary bodies, within available resources. The head of the secretariat shall manage and direct such staff and services and provide appropriate support and advice to the Bureau of the Conference of the Parties and its subsidiary bodies.

Rule 32*Functions of the secretariat*

In addition to the functions specified in the Agreement, in particular in article 50, the secretariat shall, in accordance with the present rules:

- (a) Arrange for interpretation at the meeting;
- (b) Collect, translate, reproduce, distribute and circulate the documents of the meeting;
- (c) Publish, distribute and circulate the official documents of the meeting;
- (d) Make and arrange for the keeping of sound recordings of the meeting;
- (e) Arrange for the custody and preservation of the documents of the meeting;
- (f) Perform all other work that the Conference of the Parties may require.

IX. Conduct of business**Rule 33***Sessions*

Sessions of a meeting of the Conference of the Parties shall be held in public, unless the Conference of the Parties decides otherwise. Decisions to close a session to observers shall be taken by a majority of the Parties present and voting and shall be timebound.

Rule 34*Quorum*

1. The President shall not declare a session of the meeting of the Conference of the Parties open or permit the debate to proceed unless at least one third of the Parties to the Agreement are present. The presence of a majority of the Parties to the Agreement shall be required for any decision to be taken.
2. Quorum shall be determined on the basis of the number of votes that are entitled to be cast on a decision.

Rule 35*Procedures for speaking*

1. No one may address a meeting without having previously obtained the permission of the President. Subject to rules 36 to 40 and 43 of the present rules of procedure, the President shall call upon speakers in the order in which they signify their desire to speak. The secretariat shall maintain a list of speakers. The President may call a speaker to order if the speaker's remarks are not relevant to the subject under discussion.
2. The Conference of the Parties may, on a proposal from the President or from any Party, limit the time allowed to each speaker and the number of times each representative may speak on a question. Before a decision is taken, two representatives may speak in favour of, and two against, a proposal to set such limits. When the debate is limited and a speaker exceeds the allotted time, the President shall call the speaker to order without delay.

Rule 36*Precedence*

1. Representatives of Parties shall be accorded precedence over observers, unless the Conference of the Parties decides otherwise. Precedence shall also be accorded to States not Party to the Agreement over other observers, while relevant global, regional, subregional and sectoral bodies precede over other entities and stakeholders in order, unless the Conference of the Parties decides otherwise.
2. The Chair or rapporteur of a subsidiary body may be accorded precedence for the purpose of explaining the conclusions arrived at by that subsidiary body.

Rule 37*Statement by the secretariat*

The head of the secretariat or a designated representative may at any time, including upon request or invitation by the Conference of the Parties, make either oral or written statements to the Conference of the Parties concerning any question under consideration by it.

Rule 38*Points of order*

During the discussion of any matter, a representative may, at any time, raise a point of order, on which the President shall immediately rule in accordance with the present rules. A representative may appeal against the ruling of the President. The appeal shall be put to the vote immediately, and the President's ruling shall stand unless overruled by a majority of the Parties present and voting. A representative may not, in raising a point of order, speak on the substance of the matter under discussion.

Rule 39*Closing of list of speakers and right of reply*

1. Delegations should exercise their right of reply at the end of the day whenever two sessions have been scheduled for that day and whenever such sessions are devoted to the consideration of the same item.
2. The number of interventions in the exercise of the right of reply for any delegation at a given session should be limited to two per item.
3. The first intervention in the exercise of the right of reply for any delegation on any item at a given session should be limited to ten minutes and the second intervention should be limited to five minutes.
4. During the course of a session, the President may announce the list of speakers and, with the consent of the Conference, declare the list closed. The President may, however, accord the right of reply to any representative if a speech delivered after he or she has declared the list closed makes this desirable.

Rule 40*Decisions on competence*

In the event of a motion questioning its competence to discuss any matter or to adopt a proposal or an amendment to a proposal submitted to it, the Conference of the Parties shall take a decision on whether to affirm its competence before the matter is discussed or before a decision is taken on the proposal or amendment in question.

Rule 41*Application of article 18 of the Agreement*

1. The establishment of area-based management tools, including marine protected areas, shall not include any areas within national jurisdiction and shall not be relied upon as a basis for asserting or denying any claims to sovereignty, sovereign rights or jurisdiction, including in respect of any disputes relating thereto.
2. In the course of the procedure set out in article 21 of the Agreement, a State may send a written notification to the secretariat indicating that it considers the proposal to raise concerns under article 18 of the Agreement. Upon receipt of the notification, the secretariat shall transmit it to all Parties and make it publicly available, in accordance with article 21, paragraph 3, of the Agreement. The proponent shall take due account of the views expressed in the notification. This is without prejudice to that State sending a further notification at a later stage in the procedure.
3. In accordance with article 18 of the Agreement, the Conference of the Parties can look at proposals but shall not decide on proposals referred to under article 18, and in no case shall such proposals be interpreted as recognition or non-recognition of any claims to sovereignty, sovereign rights or jurisdiction.

Rule 42*Proposals and amendments to proposals*

Proposals and amendments to proposals shall normally be introduced in writing, in one of the official languages, by the Parties, and handed to the secretariat, which shall circulate copies to delegations. As a general rule, no proposal or amendment to a proposal shall be discussed or put to the vote at any session unless copies of it have been circulated to delegations not later than the day preceding that session. The President may, however, permit the discussion and consideration of proposals, of amendments to proposals or of procedural motions, even when such proposals, amendments to proposals or motions have not been circulated or have been circulated only the same day.

Rule 43*Order of procedural motions*

1. Subject to rule 38 of the present rules of procedure, the following motions shall have precedence, in the order indicated below, over all other proposals or motions:
 - (a) To suspend the session;
 - (b) To adjourn the session;
 - (c) To adjourn the debate on the question under discussion;
 - (d) To close the debate on the question under discussion.
2. Permission to speak on a motion falling within paragraph 1 (a)–(d) of the present rule shall be granted only to the proposer and to one speaker in favour of and two against the motion, after which it shall be put immediately to the vote.

Rule 44*Withdrawal of proposals or motions*

A proposal or motion may be withdrawn by its proposer at any time before voting on it has begun, provided that the proposal or motion has not been amended. A proposal or motion thus withdrawn may be reintroduced by any other Party.

Rule 45*Reconsideration of proposals*

When a proposal has been adopted or rejected, it may not be reconsidered at the same meeting, unless the Conference of the Parties, by a two-thirds majority of the Parties present and voting, so decides. Permission to speak on a motion to reconsider shall be accorded only to the mover and to one speaker in favour of and two against the proposal, after which it shall be put immediately to the vote.

X. Decision-making**Rule 46***Right to vote*

The rights of the Parties to vote are as provided for in article 64 of the Agreement.

Rule 47*Voting thresholds*

1. The Conference of the Parties shall make every effort to adopt decisions and recommendations by consensus.
2. Except as otherwise provided in the Agreement, as set out in paragraph 3 of the present rule and as set out in rule 62 of the present rules of procedure, if all efforts to reach consensus have been exhausted, decisions and recommendations of the Conference of the Parties on questions of substance shall be adopted by a two-thirds majority of the Parties present and voting, and decisions on questions of procedure shall be adopted by a majority of the Parties present and voting.
3. Notwithstanding paragraph 2 of the present rule:
 - (a) Pursuant to article 14, paragraph 7, of the Agreement, if all efforts to reach consensus have been exhausted, decisions under that paragraph shall be adopted by the Conference of the Parties by a three-fourths majority of the Parties present and voting;
 - (b) Pursuant to article 23, paragraph 2, of the Agreement, if no consensus is reached on a decision or recommendation to be taken under Part III of the Agreement, that decision or recommendation shall be taken by a three-fourths majority of the Parties present and voting, before which the Conference of the Parties shall decide, by a two-thirds majority of the Parties present and voting, that all efforts to reach consensus have been exhausted;
 - (c) Pursuant to article 47, paragraph 6 (e), of the Agreement, if all efforts to reach consensus have been exhausted, the Conference of the Parties shall adopt a budget by a three-fourths majority of the Parties present and voting.
4. Except as otherwise set out in paragraph 3 (b) of the present rule, a determination on whether all efforts to reach consensus have been exhausted shall be made by the President, after consulting with the Bureau.
5. When the issue arises as to whether a question is one of substance or not, that question shall be treated as one of substance unless otherwise decided by the Conference of the Parties by the majority required for decisions on questions of substance.
6. If, on matters other than elections, a vote is equally divided, a second vote shall be taken. If this vote is also equally divided, the proposal shall be regarded as rejected.

Rule 48*Deferment of voting upon a request for an advisory opinion*

If the Conference of the Parties decides to request the International Tribunal for the Law of the Sea to give an advisory opinion in accordance with article 47, paragraph 7, of the Agreement, the Conference of the Parties shall defer decision-making on that proposal pending receipt of the advisory opinion by the Tribunal. If the advisory opinion is not received before the closure of the meeting during which it is requested, the Conference of the Parties shall decide when it will meet to decide upon the deferred proposal.

Rule 49*Order of voting on proposals*

If two or more proposals relate to the same question, the Conference of the Parties shall make every effort to merge these proposals and adopt them by consensus. If all efforts to reach consensus have been exhausted, the Conference of the Parties, unless it decides otherwise, shall decide on the proposals in the order in which they have been submitted. The Conference of the Parties may, after each decision on a proposal, decide whether to decide on the next proposal.

Rule 50*Division of proposals and amendments*

1. Any representative may request that any part of a proposal or of an amendment to a proposal be decided on separately. The President shall allow the request unless a Party objects. If an objection is made to the request for division, the President shall permit two representatives to speak, one in favour of and the other against the request, after which it shall be put immediately to a vote. The President may limit the time allowed to each speaker.
2. If the request referred to in paragraph 1 of the present rule is allowed or adopted, those parts of a proposal or of an amendment to a proposal that are approved shall then be decided on as a whole. If all the operative parts of a proposal or amendment have been rejected, the proposal or amendment shall be considered to have been rejected as a whole.

Rule 51*Amendment to a proposal*

A motion is considered to be an amendment to a proposal if it merely adds to, deletes from or revises parts of that proposal. An amendment shall be decided on before the proposal to which it relates is decided on and, if the amendment is adopted, the amended proposal shall then be decided on.

Rule 52*Order of voting on amendments to a proposal*

If two or more amendments to a proposal are proposed, the Conference of the Parties shall first decide on the amendment furthest removed in substance from the original proposal, then on the amendment next furthest removed therefrom, and so on, until all the amendments have been decided on. The President shall determine the order of decision-making on the amendments under the present rule.

Rule 53*Method of voting for general matters*

1. Voting, except for elections, may be by show of hands. A roll-call vote shall be taken if so requested by any Party. The roll call shall be taken in the English alphabetical order of the names of the Parties, beginning with the Party whose name is drawn by lot by the President.
2. When the Conference of the Parties votes by mechanical means, a non-recorded vote shall replace a vote by show of hands, and a recorded vote shall replace a roll call.
3. The vote of each Party participating in a roll call or a recorded vote shall be included in the relevant documents of the meeting.

Rule 54*Conduct during voting*

After the President has announced the beginning of voting, no representative shall interrupt the voting except on a point of order in connection with the actual conduct of the voting. The President may permit the Parties to explain their votes, either before or after the voting. The President may limit the time to be allowed for such explanations. The President shall not permit the proposer of a proposal or of an amendment to a proposal to explain his or her vote on his or her own proposal or amendment, except if it has been amended.

XI. Elections**Rule 55***Method of voting for elections*

1. All elections shall be held by secret ballot, unless otherwise decided by the Conference of the Parties.
2. Voting shall be dispensed with when the number of candidates corresponds to or is lower than the number of seats to be filled, unless a Party specifically requests a vote on a given election.

Rule 56*Absence of majority*

1. When one person or one delegation is to be elected and no candidate obtains, in the first ballot, a majority of the votes cast by the Parties present and voting, a second ballot, restricted to the two candidates obtaining the largest number of votes, shall be taken. If, in the second ballot, the votes are equally divided, the President shall decide between the candidates by drawing lots.
2. In the case of a tie in the first ballot among three or more candidates obtaining the largest number of votes, a second ballot shall be held. If a tie results among more than two candidates, the number shall be reduced to two by drawing lots, and the balloting, restricted to them, shall continue in accordance with the procedure set forth in paragraph 1 of the present rule.

Rule 57*Election to two or more elective places*

1. When two or more elective places are to be filled at one time under the same conditions, those candidates, in a number not exceeding the number of such places,

obtaining in the first ballot the largest number of votes and a majority of the votes cast by the Parties present and voting shall be deemed elected.

2. If the number of candidates obtaining such majority is less than the number of persons or delegations to be elected, there shall be additional ballots to fill the remaining places, the voting being restricted to the candidates obtaining the greatest number of votes in the previous ballot, to a number not more than twice the number of places remaining to be filled, provided that, after the third inconclusive ballot, votes may be cast for any eligible person or delegation.

3. If three such unrestricted ballots are inconclusive, the next three ballots shall be restricted to the candidates who obtained the greatest number of votes in the third of the unrestricted ballots, to a number not more than twice the number of places remaining to be filled, and the following three ballots thereafter shall be unrestricted, and so on, until all the places have been filled.

XII. Languages and sound recordings

Rule 58

Official languages

The official languages of the Conference of the Parties shall be Arabic, Chinese, English, French, Russian and Spanish.

Rule 59

Interpretation

1. Statements made in an official language shall be interpreted into the other official languages.

2. Any representative may speak in a language other than an official language if that representative provides for interpretation into one official language. Interpretation into the other languages of the Conference of the Parties by the interpreters of the secretariat may be based on the interpretation given in the first such language.

Rule 60

Languages of official documents

Official documents of the meetings shall be drawn up in one of the official languages and translated into the other official languages.

Rule 61

Sound recordings of meetings

Sound recordings of the meetings of the Conference of the Parties and, whenever possible, of its subsidiary bodies, shall be kept by the secretariat, consistent with the practice of the United Nations.

XIII. Amendments to the rules of procedure

Rule 62

Amending the rules of procedure

The present rules of procedure may be amended by a decision of the Conference of the Parties taken by consensus. In cases where the President decides, after consulting with the Bureau, that all efforts to reach consensus have been exhausted,

the amendment shall be adopted by a decision of the Conference of the Parties adopted by a three-fourths majority of the Parties present and voting.

XIV. Overriding authority of the Agreement

Rule 63

Precedence of the Agreement

1. Nothing in the present rules shall be construed as contradicting or modifying any provision of the Agreement.
2. In the event of any conflict between any provision of the present rules and any provision of the Agreement, the Agreement shall prevail.

XV. Miscellaneous

Rule 64

Italicized headings

The italicized headings of the present rules are for reference purposes only. They shall be disregarded in the interpretation of the rules.

Annex II

Draft terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies established under the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction

I. Relationship with the rules of procedure of the Conference of the Parties

(ALL)1. The rules of procedure of the Conference of the Parties shall apply, mutatis mutandis, to all matters not specifically dealt with under these terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies established under the Agreement, in accordance with rule 29 of the rules of procedure of the Conference of the Parties.

II. Purpose and functions

(ALL)2. Under the authority and guidance of the Conference of the Parties, the subsidiary bodies shall fulfil the functions assigned to them under the Agreement and any such other functions as may be determined by the Conference of the Parties, in order to support the implementation of the Agreement with a view to the attainment of its objectives.

(ALL)3. In implementing their functions, the subsidiary bodies shall be guided by articles 5, 6, 7 and 8 of the Agreement, as well as any other relevant provisions of the Agreement.

III. Membership

(ALL)4. For the purposes of these terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies established under the Agreement, “member” means a member of any subsidiary body established under the Agreement nominated by Parties and elected by the Conference of the Parties.

(ALL)5. The members of the subsidiary bodies shall serve in their personal capacity, as experts and acting objectively in the best interest of the Agreement.

(ALL)6. In the exercise of their functions, members of the subsidiary bodies shall uphold the highest standards of integrity and impartiality and shall maintain the confidentiality of any information designated as confidential, including scientific, technical or proprietary data, as well as relevant traditional knowledge of Indigenous Peoples and of local communities, both during and after their term of service.

(STB)7. The members of the Scientific and Technical Body shall act impartially and base their findings and recommendations on an objective, scientific and technical assessment, using the best available science and scientific information, and relevant traditional knowledge of Indigenous Peoples and local communities, where available.

1. Eligibility criteria

(ALL)8. The members of the subsidiary bodies shall possess the necessary qualifications, experience or expertise, as required in the relevant articles of the Agreement. Indicative and non-exhaustive lists, including examples of such experience or expertise for each subsidiary body, are provided in the annex to these terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies under the Agreement.

2. Number of members

[Access and Benefit-Sharing Committee]

(ABS)9. In accordance with article 15, paragraph 2, of the Agreement, the Access and Benefit-Sharing Committee shall be composed of 15 members.

(ABS)9.1. The members of the Access and Benefit-Sharing Committee shall consist of:

- (a) Two members from each of the United Nations regional groups, namely, African States, Asia-Pacific States, Eastern European States, Latin American and Caribbean States and Western European and other States;
- (b) Two members from small island developing States;
- (c) One member from least developed countries;
- (d) One member from landlocked developing countries; and
- (e) One member from other categories of developing States Parties referred to in the Agreement,¹ not included in subparagraphs (b) to (d) above, to be filled on a rotational basis following an agreed sequence, in a manner that ensures geographic distribution, balanced participation over time and avoids the concentration of representation among a limited number of States.

Capacity-Building and Transfer of Marine Technology Committee

(CBTMTC)9. The Capacity-Building and Transfer of Marine Technology Committee shall be composed of 22 members.

(CBTMTC)9.1. The members of the Capacity-Building and Transfer of Marine Technology Committee shall consist of:

- (a) Three members from each of the United Nations regional groups, namely, African States, Asia-Pacific States, Eastern European States, Latin American and Caribbean States and Western European and other States;
- (b) Two members from small island developing States;
- (c) Two members from least developed countries;
- (d) Two members from landlocked developing countries; and
- (e) One member from other categories of developing States Parties referred to in the Agreement,² not included in subparagraphs (b) to (d) above, to be filled on a rotational basis following an agreed sequence, in a manner that ensures geographic

¹ Developing States Parties from geographically disadvantaged States, coastal African States, archipelagic States and developing middle-income countries.

² Developing States Parties from geographically disadvantaged States, coastal African States, archipelagic States and developing middle-income countries.

distribution, balanced participation over time and avoids the concentration of representation among a limited number of States.

Implementation and Compliance Committee

(ICC)9. The Implementation and Compliance Committee shall be composed of 14 members.

(ICC)9.1. The members of the Implementation and Compliance Committee shall consist of:

- (a) Two members from each of the United Nations regional groups, namely, African States, Asia-Pacific States, Eastern European States, Latin American and Caribbean States and Western European and other States;
- (b) One member from small island developing States;
- (c) One member from least developed countries;
- (d) One member from landlocked developing countries; and
- (e) One member from other categories of developing States Parties referred to in the Agreement,³ not included in subparagraphs (b) to (d) above, to be filled on a rotational basis following an agreed sequence, in a manner that ensures geographic distribution, balanced participation over time and avoids the concentration of representation among a limited number of States.

Finance Committee on financial resources

(FC)9. The Finance Committee on financial resources shall be composed of [x] members.

(FC)9.1. The members of the Finance Committee on financial resources shall consist of:

- (a) [x] members from each of the United Nations regional groups, namely, African States, Asia-Pacific States, Eastern European States, Latin American and Caribbean States and Western European and other States;
- [(b) [x] member[s] from each of the categories of least developed countries, small island developing States, landlocked developing countries and archipelagic States; and]
- [(c) One member from each of the five largest financial contributors to the budget of the Agreement.]

Scientific and Technical Body

(STB)9. The Scientific and Technical Body shall be composed of 35 members.

(STB)9.1. The members of the Scientific and Technical Body shall consist of:

- (a) Five members from each of the United Nations regional groups, namely, African States, Asia-Pacific States, Eastern European States, Latin American and Caribbean States and Western European and other States;
- (b) Three members from small island developing States;
- (c) Three members from least developed countries;

³ Developing States Parties from geographically disadvantaged States, coastal African States, archipelagic States and developing middle-income countries.

(d) Two members from landlocked developing countries; and

(e) Two members from other categories of developing States Parties referred to in the Agreement,⁴ not included in subparagraphs (b) to (d) above, to be filled on a rotational basis following an agreed sequence, in a manner that ensures geographic distribution, balanced participation over time, and avoids the concentration of representation among a limited number of States.]

3. Selection process

(ALL)10. The members of the subsidiary bodies shall be nominated by Parties and elected by the Conference of the Parties in accordance with rules 55 to 57 of the rules of procedure of the Conference of the Parties and taking into account gender balance and equitable geographical distribution or representation, as well as the following:

(a) The secretariat shall address a letter to States Parties and to the Chairs of the United Nations regional groups, inviting the submission of nominations, including the names and curricula vitae of the proposed candidates, no later than 90 days before the next meeting of the Conference of the Parties;

(b) Nominations for members identified in paragraphs 9.1 above shall be made by States Parties, either individually or through their relevant regional groups or categories of States, where applicable, and submitted, through the secretariat, to the Conference of the Parties. States Parties and regional groups, or categories of States, where applicable, are encouraged to nominate members identified in paragraphs 9.1 above, taking into account gender balance and, as appropriate, early-career ocean professionals;

(c) Proposed candidates should be persons. A Party should not be accepted as a proposed candidate even if it plans to identify a person at a later time;

(d) The Conference of the Parties will reach its decisions at its next meeting, taking into account gender balance and the expertise and experience required for the work of the subsidiary bodies established under the Agreement.

4. Term of office

(ALL)11. Subject to paragraph (ALL)12, members shall serve from the close of the ordinary meeting at which they are elected for a term of four years from the date of appointment and shall be limited to two terms.

(ALL)12. The terms of one half of the members elected at the first election shall expire at the end of two years, and the terms of the remaining members shall expire at the end of four years.

5. Replacement members

(ALL)13. If a member of a subsidiary body resigns or is otherwise unable to complete their assigned term, a replacement shall be nominated by the United Nations regional group or by the relevant category of States concerned to serve on an interim basis until elected by the Conference of the Parties, at its next ordinary meeting, for the remainder of that member's term.

6. Officers

(ALL)14. Each subsidiary body shall elect a Chair and Vice-Chair from among its members, taking into account gender balance and equitable geographical

⁴ Developing States Parties from geographically disadvantaged States, coastal African States, archipelagic States and developing middle-income countries.

representation, with due consideration given to geographical rotation, for a term of two years.

(ALL)15. Officers shall serve for a maximum of two terms, which may be held consecutively.

(ALL)16. In the absence of the Chair, or in the event of a conflict of interest for the Chair, the Vice-Chair shall take his or her place. If the Chair of a subsidiary body, for any reason, is unable to complete the term of office, the relevant subsidiary body shall elect a new Chair for the remainder of the term.

IV. Modalities for the operation of the subsidiary bodies established under the Agreement

(ALL)17. Each subsidiary body may develop specific additional modalities for the discharge of its functions and shall submit them to the Conference of the Parties for approval.

1. Programme of work

(ALL)18. The subsidiary bodies shall work in a timely and efficient manner.

(ALL)19. The Conference of the Parties shall approve, in accordance with the Agreement, the matters to be considered by each subsidiary body, and the President of the Conference of the Parties may, upon the request of the Chair of the subsidiary body concerned, adjust the allocation of work.

(ALL)20. Under the guidance of the Conference of the Parties, the subsidiary bodies shall develop their own programmes of work, including activities of any ad hoc groups, working groups or subcommittees, and relevant time frames. The programme of work shall be flexible. The subsidiary bodies shall submit their programmes of work to each ordinary meeting of the Conference of the Parties for consideration.

(ALL)21. The programme of work for each of the subsidiary bodies shall include, inter alia:

- (a) A standing item on cooperation with relevant instruments, frameworks and bodies;
- (b) A standing item on the needs, priorities and other matters related to small island developing States, in relation to its respective function;
- (c) A standing item on Indigenous Peoples and local communities, and their traditional knowledge, in relation to the function of the subsidiary body.

(ALL)22. In preparing its programme of work, each subsidiary body shall take into account the needs and priorities of developing States, in particular the least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States, coastal African States, archipelagic States and developing middle-income countries.

(ALL)23. The subsidiary bodies shall collaborate with each other and the secretariat for the purpose of developing and implementing a joint programme of work to address the needs, priorities and special circumstances of small island developing States across all subsidiary bodies. The development and implementation of the joint programme of work shall be led by the Capacity-Building and Transfer of Marine Technology Committee.

2. Meetings

(a) Dates of meetings

(ALL)24. The Chair of a subsidiary body, in consultation with the secretariat and the President of the Conference of the Parties, shall decide on the dates of the meetings of that subsidiary body.

(b) Languages

(ALL)25. Arabic, Chinese, English, French, Russian and Spanish shall be the working languages of the subsidiary bodies.

(ALL)26. Interpretation shall be offered between all working languages during meetings of the subsidiary bodies.

(ALL)27. Reports and other documents will be made available in all working languages.

(ALL)28. Meetings of any ad hoc groups, working groups or subcommittees of the subsidiary bodies shall be held in English only and without interpretation.

(c) In-person, virtual and hybrid participation

(ALL)29. The subsidiary bodies may meet in person, virtually or in a hybrid format, including intersessionally, taking into account different time zones and the challenges and resource restraints faced by developing States Parties, in particular the least developed countries, landlocked developing countries and small island developing States.

(d) Observers

(ALL)30. The meetings of the subsidiary bodies and their ad hoc groups, working groups or subcommittees shall be open to accredited observers unless the Conference of the Parties or the subsidiary body concerned decides, by a two-thirds majority, that the meeting should be closed, as necessary. Decisions to close meetings to observers shall be time-bound. Accredited observers participating in the meetings of subsidiary bodies shall not have the right to vote.

(ALL)31. States Parties to the Agreement may attend the meetings of the subsidiary bodies and their ad hoc groups, working groups and subcommittees as observers, without the right to vote.

(ICC)32. When deliberations of the Implementation and Compliance Committee pertain to preparing recommendations or voting on recommendations, the Committee may decide to close those deliberations to observers other than States Parties.

(ALL)33. The Chairs of subsidiary bodies under the Agreement may attend the meetings of the other subsidiary bodies established under the Agreement and may participate in such meetings without the right to vote.

3. Decision-making

(ALL)34. A majority of the members of the subsidiary body shall constitute a quorum, but in the event of the subsidiary body being open-ended, one quarter of the Parties shall constitute a quorum.

(ALL)35. Members of subsidiary bodies shall make every effort to adopt recommendations to the Conference of the Parties by consensus. If the Chair of the subsidiary body determines that all efforts to reach consensus have been exhausted,

recommendations to be submitted to the Conference of the Parties shall be adopted by a vote, and each member of the subsidiary body shall have one vote.

(ALL)36. When matters are subject to a vote, decisions of subsidiary bodies shall be taken by a two-thirds majority of its members present and voting.

(ALL)37. The Chair of a subsidiary body may exercise the right to vote.

(ALL)38. When decisions of subsidiary bodies will significantly affect any State, group of States, Indigenous Peoples and local communities, or traditional knowledge, the subsidiary bodies shall make all reasonable efforts to consult with those affected before finalizing recommendations to the Conference of the Parties.

(ALL)39. All decisions taken by the subsidiary bodies shall be duly included in their reports. In particular, when any matter is subject to a vote, the subsidiary body shall ensure that the views of all members of the body are fairly reflected in its report to the Conference of the Parties.

4. Recommendations

(ALL)40. In providing recommendations within their competences, the subsidiary bodies may provide options, when applicable, and shall include reasons and relevant supporting documents.

(ALL)41. Recommendations to the Conference of the Parties shall include information on how such recommendations would affect the capacity of developing States to implement them.

(ICC)42. The Implementation and Compliance Committee shall make recommendations, as appropriate, while cognizant of relevant national circumstances, to the Conference of the Parties, accompanied by implementation and reporting timelines and recommended capacity-building measures.

5. Reporting requirements

(ALL)43. The subsidiary bodies shall prepare, and thereafter transmit, a report on their work to each ordinary meeting of the Conference of the Parties through the secretariat, in accordance with any guidelines approved by the Conference of the Parties. The subsidiary bodies shall submit their reports to the secretariat before the opening of the meeting of the Conference of the Parties at which it is to be considered. A copy of the report shall also be transmitted to members of the relevant subsidiary body.

(ALL)44. The report shall cover the work that the subsidiary body has carried out since its previous report to perform its functions, as set out in the Agreement and these terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies established under the Agreement, and all matters considered at the meetings of the subsidiary body and by its ad hoc groups, working groups or subcommittees, as appropriate.

(ALL)45. Unless a subsidiary body decides otherwise, reports of the subsidiary bodies shall be made public once adopted, subject to the need to protect confidential information.

(ALL)46. The subsidiary bodies may recommend standardized reporting templates to the Conference of the Parties.

(ALL)47. Subsidiary bodies may, where appropriate, prepare joint reports or coordinated sections of their reports on cross-cutting matters.

6. Establishment of ad hoc groups, working groups or subcommittees

(ALL)48. Ad hoc groups, working groups or subcommittees may be established by the subsidiary bodies under the guidance of the Conference of the Parties, as required, to provide advice and recommendations to the subsidiary bodies.

7. Experts

(ALL)49. The subsidiary bodies may invite experts on an ad hoc basis, taking into account gender balance and geographical representation, to participate in their work or that of their ad hoc groups, working groups and subcommittees, as needed. The participation of such experts shall be limited in duration and to specific needs. An expert participating in the work of the subsidiary bodies shall not have the right to vote.

(STB)50. Pursuant to article 31, paragraph 3, of the Agreement, a roster of experts shall be created under the Scientific and Technical Body to provide advice and assistance for Parties with capacity constraints who request it, to conduct and evaluate screenings and environmental impact assessments for a planned activity under their jurisdiction or control. The roster shall be created by the Scientific and Technical Body and administered by the secretariat. The Scientific and Technical Body shall develop guidance for, inter alia, the selection of roster members and procedures for the regular review and update of the roster, which shall be approved by the Conference of the Parties. States Parties may nominate experts for the roster.

(ALL)51. Subsidiary bodies may establish additional rosters of experts, including a general roster of expertise relevant to that subsidiary body and a roster of experts on issues pertaining to Indigenous Peoples and local communities and traditional knowledge.

8. Financial arrangements

(ALL)52. Pursuant to the terms of reference of the voluntary trust fund established under the Agreement, the participation of members of subsidiary bodies from developing States Parties, in particular the least developed countries, landlocked developing countries and small island developing States, in the meetings of the subsidiary bodies may be facilitated through the operation of that fund.

V. Cooperation and coordination

(ALL)53. The subsidiary bodies established under the Agreement shall seek to cooperate with other relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies, as well as to engage with other stakeholders. To facilitate such cooperation, the subsidiary bodies established under the Agreement may engage, through their Chairs, Vice-Chairs or other member authorized by the Chairs or Vice-Chairs, with bodies of other relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies.

(ALL)54. In performing their tasks in furtherance of the objectives of the Agreement, the subsidiary bodies shall take into account the work done by relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies and shall seek to avoid duplication.

(ALL)55. Subject to funding availability, the Chair, Vice-Chair or other member of the relevant subsidiary body established under the Agreement, as authorized by the Chair or Vice-Chair, may, after consulting with that body, represent that subsidiary

body at relevant meetings of equivalent bodies of such instruments, frameworks and bodies, on the basis of mutual consent and joint arrangements with the relevant bodies concerned.

(ALL)56. The subsidiary bodies established under the Agreement may cooperate and coordinate with the secretariat, one another and the Clearing-House Mechanism, including through consultations, participation in meetings and joint meetings, as well as any other modalities as may be necessary, subject to any guidance from the Conference of the Parties.

VI. Conflict of interest and confidentiality

(ALL)57. For the purposes of these terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies established under the Agreement, “conflict of interest” means any interest, including a business or financial interest, that could affect the ability of a member or expert to discharge their duties and responsibilities objectively and includes a real, potential or apparent conflict of interest.

(ALL)58. Each member of the subsidiary bodies shall, with respect to any matter that is under consideration by, or under the mandate of, the relevant subsidiary body, avoid any conflict of interest.

(ALL)59. Members of the Implementation and Compliance Committee shall not participate in the deliberations to prepare recommendations or vote on recommendations that relate to the Party that nominated them.

(ALL)60. The subsidiary bodies shall require each member, as well as each invited expert, to disclose any conflict of interest prior to participating in the work of the subsidiary body. Members and experts shall also be required to inform the relevant subsidiary body of any change in the information disclosed, including any new conflicts of interest, as soon as practicable.

(ALL)61. The Conference of the Parties shall decide on individual cases of conflict of interest concerning members of the subsidiary bodies.

(ALL)62. The subsidiary bodies shall decide on individual cases of conflict of interest concerning experts invited to take part in their work.

(ALL)63. Members and invited experts of the subsidiary bodies shall maintain the confidentiality, even after the termination of their functions, of any data that are transferred to the subsidiary body in accordance with the Agreement, or any other confidential or proprietary information coming to their knowledge by reason of their membership of, or participation in, that subsidiary body. Observers shall maintain the confidentiality of any data or other confidential or proprietary information coming to their knowledge by reason of their participation in any subsidiary body.

(ALL)64. The transmission of information held by a subsidiary body to another subsidiary body established under the Agreement, and to the Clearing-House Mechanism, shall be consistent with the confidentiality obligations set out in the Agreement and in these terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies established under the Agreement.

(ALL)65. In the event of an alleged breach of an obligation relating to conflict of interest or confidentiality by a member of any subsidiary body, invited expert or observer, the Conference of the Parties may take appropriate action and shall make any findings and recommendations publicly available.

VII. Relationship with the Agreement

(ALL)66. Nothing in these terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies established under the Agreement shall be construed as contradicting or modifying any provision of the Agreement.

(ALL)67. In the event of any conflict between any paragraph of the present terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies established under the Agreement and any provision of the Agreement, the Agreement shall prevail.

VIII. Review and amendments

(ALL)68. These terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies established under the Agreement may be subject to periodic review by the subsidiary bodies and the Conference of the Parties.

(ALL)69. These terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies established under the Agreement may be amended by a decision of the Conference of the Parties.

(ALL)70. A subsidiary body may make recommendations for amendments to these terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies established under the Agreement, with reference to their application to that subsidiary body, which shall be subject to approval by the Conference of the Parties.

Annex

Lists of appropriate qualifications and expertise for members of subsidiary bodies

1. The lists of areas of expertise set out below for each subsidiary body are indicative and non-exhaustive and shall not preclude the nomination and election of members possessing other relevant qualifications, expertise or professional experience necessary for the effective performance of the functions of the relevant subsidiary body.
2. The Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction shall periodically review the list of areas of expertise for each body, with a view to including any additional competencies necessary for the effective performance of the functions of the relevant subsidiary body.

Access and Benefit-Sharing Committee

3. The members of the Access and Benefit-Sharing Committee may possess recognized experience and expertise in relation to one or more aspects of marine genetic resources, including the fair and equitable sharing of benefits, in particular those relevant to the work of the Committee, which may include legal, policy, scientific or technical expertise, or technical expertise and/or professional experience in relation to marine genetic resources and digital sequence information on marine genetic resources, such as utilization, including commercialization, best practices, tools and methodologies, data science and governance, traditional knowledge of Indigenous Peoples and local communities, and multilateral benefit-sharing, including the sharing of both monetary and non-monetary benefits, as well as expertise in managing databases and repositories, biotechnology, including commercial aspects, marine genetic science, synthetic biology, bioprospecting and other related fields of expertise.

Capacity-Building and Transfer of Marine Technology Committee

4. The members of the Capacity-Building and Transfer of Marine Technology Committee may possess recognized experience and expertise in capacity-building and the transfer of marine technology in one or more aspects of the conservation and sustainable use of marine biological diversity, in particular those relevant to the work of the Committee, which may include legal, policy, scientific or technical expertise and/or professional experience concerning capacity-building and the development and transfer of marine technology in relation to the specific areas covered by the Agreement, namely, marine genetic resources, including the fair and equitable sharing of benefits, measures such as area-based management tools, including marine protected areas, and environmental impact assessments, or anthropological expertise, relevant legal, policy, scientific or technical expertise in relation to small island developing States, landlocked developing countries or archipelagic States, relevant multidisciplinary expertise and expertise in relevant traditional knowledge of Indigenous Peoples and local communities.

Implementation and Compliance Committee

5. The members of the Implementation and Compliance Committee may possess recognized experience and expertise in implementation and compliance related to one or more aspects of the conservation and sustainable use of marine biological diversity, in particular in areas beyond national jurisdiction, and those relevant to the work of

the Committee, which may include legal, policy, scientific or technical expertise and/or professional experience in relation to the consideration of issues of implementation and compliance under relevant multilateral instruments at the individual and systemic levels, in the areas covered by the Agreement.

Finance Committee on financial resources

6. The members of the Finance Committee on financial resources may possess demonstrated experience and expertise in funding and financial resources, including in relation to one or more aspects of the conservation and sustainable use of marine biological diversity, in particular those relevant to the work of the Committee, which may include legal, policy, financial, scientific or technical expertise and/or professional experience in relation to the identification and mobilization of funds under multilateral instruments, public finance, international finance, institutional financial management, project financing, as well as expertise and/or professional experience relevant for the assessment of the needs of States, in particular developing States, landlocked developing countries and small island developing States, and the assessment of such needs, the availability and timely disbursement of funds, the transparency of decision-making and management processes concerning fundraising and allocations, and financial accountability and transparency mechanisms.

Scientific and Technical Body

7. The Scientific and Technical Body shall be composed of members with suitable qualifications, taking into account the need for multidisciplinary expertise, including relevant scientific and technical expertise and expertise in relevant traditional knowledge of Indigenous Peoples and local communities.

8. The members of the Scientific and Technical Body may possess recognized experience and expertise in one or more aspects of the conservation and sustainable use of marine biological diversity, in particular those relevant to the work of the Scientific and Technical Body, which may include experience in conservation and sustainable use of marine biological diversity, including scientific, technical and interdisciplinary expertise, and/or professional experience in marine biology, oceanography, environmental science and other relevant natural sciences; environmental policy, law, socioeconomic dimensions of biodiversity and other relevant social sciences, data science and relevant traditional knowledge of Indigenous Peoples and local communities; or scientific and technical expertise and/or professional experience in relation to measures such as area-based management tools, including marine protected areas and expertise in the criteria listed in annex I to the Agreement, and environmental impact assessments, including screening thresholds, cumulative impacts and strategic environmental assessments.

Annex III

Draft decision for consideration by the first meeting of the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction concerning the relationship between the secretariat established under article 50 of the Agreement and the United Nations

The Conference of the Parties,

Recalling that, pursuant to article 50, paragraph 1, of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction, the Conference of the Parties, at its first meeting, shall make arrangements for the functioning of the secretariat established thereunder,

Reaffirming that, pursuant to article 48, paragraph 1, of the Agreement, the Conference of the Parties shall promote transparency in decision-making processes and other activities carried out under the Agreement,

Recognizing the functions, powers and role of the Conference of the Parties in matters relating to the implementation of the objectives of the Agreement,

Acknowledging the value of engagement between the Conference of the Parties and the Secretary-General of the United Nations, and committing to transparency in the interaction between the Conference of the Parties and the Secretary-General,

Having considered the conclusions of the Preparatory Commission for the Entry into Force of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction and the Convening of the First Meeting of the Conference of the Parties to the Agreement, established by the General Assembly in its resolution [78/272](#) of 24 April 2024, on this matter, contained in the report of the Preparatory Commission,¹

Option I

1. *Decides* that the secretariat established under article 50 of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction shall be institutionally linked to the United Nations, while not being fully integrated into the work programme and management structure of any particular department or programme;

2. *Accepts* the arrangements proposed by the Secretary-General of the United Nations for administrative support to the secretariat established under article 50 of the Agreement, contained in [*document symbol to be added*], and requests the Secretary-General to provide, on a full cost recovery basis, as applicable, these arrangements to the secretariat;

¹ [A/AC.296/2026/9](#).

3. *Decides* to review these arrangements, not later than 31 December 2031, in consultation with the Secretary-General, with a view to making such modifications as may be considered desirable by both parties;

Option II

1. *Decides* that the secretariat shall enter into a relationship with the United Nations [on the basis of the draft relationship agreement between the United Nations and the secretariat contained in the annex to this decision] [in accordance with the terms of a relationship agreement to be concluded with the United Nations].

[4][2]. *Recognizes* that the secretariat shall enjoy international legal personality, in addition to the legal capacity it shall possess in the territory of the host State in accordance with article 50, paragraph 3, of the Agreement [under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction].

[5][3]. *Decides* that the head of the secretariat shall serve for a four-year term, renewable for one additional term, at the level of Under-Secretary-General.

[Placeholder for potential additional text outlining the appointment process for the head of the secretariat]

[6][4]. *Expresses* its appreciation for the support provided by the Secretary-General of the United Nations, through the Division for Ocean Affairs and the Law of the Sea of the Office of Legal Affairs of the United Nations Secretariat, and expresses the desire that cooperation between the United Nations and the secretariat continue.

Annex IV

Draft decision for consideration by the first meeting of the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction on modalities for the decision on the seat of the secretariat established under article 50 of the Agreement

The Conference of the Parties,

Recalling that, pursuant to article 50, paragraph 1, of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction, the Conference of the Parties, at its first meeting, shall make arrangements for the functioning of the secretariat established thereunder, including deciding on its seat,

Having considered the conclusions of the Preparatory Commission for the Entry into Force of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction and the Convening of the First Meeting of the Conference of the Parties to the Agreement, established by the General Assembly in its resolution [78/272](#) of 24 April 2024, on this matter, contained in the report of the Preparatory Commission,¹

1. *Decides* that it will make every effort to reach a decision on the seat of the Secretariat by consensus;
2. *Also decides* that, if all efforts to reach consensus have been exhausted:
 - (a) It will take a decision, by secret ballot, by a two-thirds majority of the Parties present and voting;
 - (b) If a two-thirds majority does not emerge for any one candidate after the first round of voting, successive rounds will be taken, the candidate receiving the least number of votes being eliminated after each round, until only two offers remain and one receives a two-thirds majority vote of the Parties present and voting.

¹ [A/AC.296/2026/9](#).

Annex V

Draft financial rules governing the funding of the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction and the funding of the secretariat and any subsidiary bodies*

1. Scope

1.1 The present rules shall govern the financial administration of the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction and the secretariat and any subsidiary bodies established under the Agreement.

1.2 In respect of matters not specifically provided for by the present rules, the Financial Regulations and Rules of the United Nations shall apply.

2. Financial period

The financial period shall normally be a biennium consisting of two consecutive calendar years. The first year of the financial period shall normally be the year subsequent to the year when an ordinary meeting of the Conference of the Parties is being held, except that the remainder of the year in which the first meeting of the Conference of the Parties is held will be included in the first financial period.

3. Budget

3.1 The head of the secretariat shall prepare a budget proposal for the following financial period, which shall be presented in United States dollars. The budget proposal shall show the projected income and expenditures for each calendar year, with income being estimated conservatively. For ease of reference, the budget proposal should also include the actual income and expenditures for each year of the previous financial period, as well as estimates of actual expenditure in the current financial period.

3.2 The budget proposal shall be divided into parts and sections and shall address, when appropriate, administration and programmes, with the part on programmes further subdivided into subprogrammes, outputs, objectives and expected achievements. The proposal shall be accompanied by such information, annexes and explanatory statements as may be necessary for the consideration of the budget, including a statement on the main changes to the content in comparison with the previous financial period, as well as its programmatic content where applicable, and such further annexes or statements as the head of the secretariat may deem necessary and useful.

3.3 (a) The Conference of the Parties may request the head of the secretariat to transmit the budget proposal, including any supporting documentation, to the Finance Committee on financial resources, which may provide, where appropriate, observations or technical input on matters related to article 52, paragraph 14, of the Agreement, for consideration by the Conference of the Parties;

* Where options have been deleted, this is without prejudice to any decision taken on secretariat arrangements.

(b) The budget proposal, including any supporting documentation, and any observations or technical input of the Finance Committee on financial resources shall be transmitted to all Parties at least 90 days prior to the opening of the meeting of the Conference of the Parties at which the budget is to be adopted.

3.4 The Conference of the Parties shall, prior to the commencement of the financial period that the budget covers, consider the budget proposal and adopt the budget in accordance with article 47, paragraph 6 (e), of the Agreement.

3.5 The head of the secretariat shall provide the Conference of the Parties with cost estimates for actions that have budgetary implications that are not foreseen in the draft programme of work but are included in proposed draft decisions, prior to the adoption of those decisions by the Conference of the Parties. Such cost estimates shall be transmitted to all Parties sufficiently in advance to allow adequate time for consideration. The head of the secretariat shall also provide a justification of the unavailability of such costs.

3.6 (a) Supplementary budget proposals may be submitted by the head of the secretariat when the expenditures associated with such proposals are covered by additional voluntary contributions and if exceptional circumstances make this necessary, and only:

- (i) When they are required to finance activities which the head of the secretariat considers to be of the highest urgency and which could not have been foreseen at the time the initial budget proposal was prepared;
- (ii) In respect of a decision by the Conference of the Parties;
- (iii) When they cover activities mentioned in the initial budget proposal for the respective financial period as budget items for which later submissions would be made; or
- (iv) When they involve changes in expenditure requirements associated with inflation and currency fluctuations that make activities adopted by the Conference of the Parties otherwise financially unviable;

(b) Such proposals shall be prepared in a format consistent with the approved budget and shall include a justification of the unavailability of the expenditure and an explanation of the circumstances set out in rule 3.6 (a);

(c) The present rules shall be applicable to the proposed supplementary budget;

(d) The Conference of the Parties may invite the Finance Committee on financial resources to review any supplementary budget proposal and may take into account observations or technical input of the Finance Committee on matters related to article 52, paragraph 14, of the Agreement, where appropriate;

(e) Any supplementary budget shall be subject to approval by the Conference of the Parties.

3.7 (a) The adoption of the budget by the Conference of the Parties shall constitute an authorization to the head of the secretariat to incur obligations and make payments for the purposes for which the appropriations were approved and up to the amounts so approved, provided always that, unless specifically authorized by the Conference of the Parties, commitments are covered by related received funds;

(b) The head of the secretariat may enter into commitments for future financial periods, provided that such commitments do not affect the current budget and:

(i) Are for activities which have been approved by the Conference of the Parties and are expected to continue beyond the end of the current financial period; or

(ii) Are authorized by specific decisions of the Conference of the Parties;

(c) In the event that the Secretary-General of the United Nations anticipates that there might be a shortfall in resources over the financial period as a whole, the Secretary-General shall notify the head of the secretariat, who shall adjust the budget so that commitments are at all times fully covered by the funds received.

3.8 The head of the secretariat may make transfers within each of the main appropriation lines of the approved budget. The head of the secretariat may also make transfers between such appropriation lines of up to 15 per cent of the main appropriation line from which the transfer is made.

3.9 The head of the secretariat shall prudently manage appropriations, taking into account the availability of cash balances and the purpose of the budget lines from which the appropriations are being made. The secretariat shall regularly review the availability and timely disbursement of funds and submit a report on this matter to the Conference of the Parties. The report prepared by the secretariat will thereafter be submitted to the Conference of the Parties.

4. Funds

4.1 A general trust fund for the Agreement shall be established or designated by the Secretary-General of the United Nations and managed by the head of the secretariat for the purpose of funding the institutions established under the Agreement.

4.2 The general trust fund shall be used to fund the institutions established under the Agreement, namely the Conference of the Parties, the secretariat and any subsidiary bodies. The financial resources specified in rule 5.1 shall be credited to the general trust fund, unless such resources have been earmarked to be credited to other funds established under the Agreement. All budget expenditures that are made pursuant to rule 3.7 (a) shall be charged to the general trust fund.

4.3 Within the general trust fund a working capital reserve shall be maintained, at a level to be determined from time to time by the Conference of the Parties by consensus. The working capital reserve shall ensure continuity of operations in the event of a temporary shortfall of cash and shall operate in accordance with the following rules:

(a) The available funds in the working capital reserve may not be used to cover outstanding contributions by Parties;

(b) Drawdowns from the working capital reserve shall be restored from contributions as soon as possible and no later than the end of the following year;

(c) Income derived from investments of the working capital reserve shall be credited to miscellaneous income;

(d) The working capital reserve shall be subject to review by the Conference of the Parties every financial period, including with regard to its level;

(e) If the working capital reserve is terminated, the funds remaining in the reserve at the time of termination shall be redistributed to the Parties to the Agreement on a pro rata basis according to the scale of assessments;

(f) The Conference of the Parties shall provide further guidelines to ensure that the working capital reserve is used in a transparent and sustainable manner.

4.4 The Conference of the Parties may establish a voluntary funding mechanism to facilitate the participation of representatives of Indigenous Peoples and local communities in the meetings of the bodies established under the Agreement, as well as of any ad hoc groups, working groups or subcommittees established under such bodies. The present rules shall apply, *mutatis mutandis*, to such a funding mechanism, unless otherwise decided by the Conference of the Parties in consultation with representatives of Indigenous Peoples and local communities. The funding mechanism shall be managed by the head of the secretariat and be guided by established United Nations practice.

4.5 The Conference of the Parties may establish additional funds in accordance with article 52, paragraph 5, of the Agreement. The purpose and limits of each fund shall be clearly defined by the Conference of the Parties. Unless otherwise provided by the Conference of the Parties, such funds shall be administered in accordance with the present rules. Should a fund so established result in additional liability to the general trust fund, that liability must be quantified and approved in advance by the Conference of the Parties.

4.6 In the event that the Conference of the Parties decides to terminate the general trust fund or other funds established pursuant to the present rules, it shall so advise the Secretary-General of the United Nations at least six months before the date of termination so decided. The general trust fund may be terminated only if, prior to the termination date, a new fund has been established to ensure the funding of the institutions established under the Agreement. The Conference of the Parties shall decide, in consultation with the Secretary-General of the United Nations, on the distribution of any uncommitted balance after all liquidation expenses have been met.

5. Contributions

5.1 The following financial resources are available to fund the institutions established under the Agreement:

(a) The assessed contributions of the Parties that are to be paid according to article 52, paragraph 2, of the Agreement shall be determined on the basis of an indicative scale adopted by the Conference of the Parties and based on such a scale of assessments of the United Nations as may be adopted from time to time by the General Assembly, adjusted so as to ensure that no Party contributes less than 0.001 per cent of the total, that no one contribution exceeds 22 per cent of the total and that no contribution from a least developed country Party exceeds 0.01 per cent of the total;

(b) Voluntary contributions made by Parties in addition to those under subparagraph (a) above [including those made by the Government hosting the secretariat];

(c) Funding provided through public and private sources, both national and international, including, but not limited to, contributions from States, international financial institutions, existing funding mechanisms under global and regional instruments, donor agencies, intergovernmental organizations, non-governmental organizations and natural and juridical persons, and through public-private partnerships;

(d) The uncommitted balance of income received from previous financial periods;

(e) Miscellaneous income, including income from the investment of contributions not immediately required as set out in rule 5.7.

5.2 The Conference of the Parties shall, in adopting the indicative scale referred to in rule 5.1 (a), make adjustments to take account of assessed contributions of Parties that are not members of the United Nations, as well as those of regional economic integration organizations that are Parties.

5.3 In respect of assessed contributions of the Parties made pursuant to rule 5.1 (a), the following rules apply:

(a) Assessed contributions shall be paid annually. They are due on 1 January of each calendar year and should be paid promptly and in full, or in instalments if this is not possible. Parties should be notified of the amount of their contributions for a given year by 15 October of the previous year. As of 1 January of the following calendar year, the unpaid balance of such contributions shall be considered to be one year in arrears;

(b) Each Party shall, as far in advance as possible of the date due for the assessed contribution, inform the head of the secretariat of the contribution it intends to make and of the projected timing of that contribution, which may be aligned with the Parties' financial cycle at the national level;

(c) If the assessed contributions of a Party are in arrears, the head of the secretariat shall write to that Party to impress upon it the importance of the timely payment of such contributions and remind it of the measures that may be taken in accordance with rule 5.3 (f). The head of the secretariat shall report to the Conference of the Parties at its next meeting on the consultations with such Parties;

(d) The head of the secretariat shall extend the payment deadline, by up to two years as appropriate, for developing States Parties that have been affected by force majeure, including natural disasters and public health emergencies. An appropriate payment schedule shall be agreed between the head of the secretariat and the Party so affected. The head of the secretariat must report any extension request, the justification therefor and the payment schedule to the Bureau and to the Conference of the Parties;

(e) If the amount of a Party's arrears equals or exceeds the amount of the contributions due from it for the preceding two full years, the head of the secretariat shall agree with that Party on a payment schedule to permit it to clear all outstanding arrears within a maximum of two years, depending on the financial circumstances of the Party, and to pay future contributions by their due dates, taking into account the circumstances of developing States Parties. The head of the secretariat shall report to the Bureau and to the Conference of the Parties at their next meetings on progress under any such schedule;

(f) If the amount of a Party's arrears equals or exceeds the amount of the contributions due from it for the preceding two full years, a payment schedule according to rule 5.3 (e) is not jointly decided or respected and the Party's payment deadline has not been extended according to rule 5.3 (d), the Conference of the Parties shall decide on appropriate measures, taking into account the specific needs and special requirements of developing States Parties, in particular the least developed countries, landlocked developing countries and small island developing States;

(g) Assessed contributions from States and regional economic integration organizations that become Parties to the Agreement after the beginning of a financial period shall be made *pro rata temporis* for the balance of that financial period. Consequent adjustments shall be made at the end of each financial period for other Parties.

5.4 The use of contributions made pursuant to rule 5.1 (b) and (c) shall be consistent with the objective and the general principles and approaches of the Agreement.

At each ordinary meeting of the Conference of the Parties, the head of the secretariat shall present a report on such contributions received and expected, as well as on their sources, amounts, purposes and conditions. If the acceptance of such contributions involves further financial liability, directly or indirectly, for the institutions established under the Agreement, it shall require the prior approval of the Conference of the Parties.

5.5 All contributions shall be paid in United States dollars or the equivalent in a convertible currency. They shall be paid into a bank account to be designated by the Secretary-General of the United Nations, in consultation with the head of the secretariat. In conversion of currencies into United States dollars, the United Nations operational rate of exchange shall be used.

5.6 The head of the secretariat shall acknowledge promptly the receipt of all pledges and contributions and shall inform the Parties, twice a year, by publishing on the website of the Agreement up-to-date information on the status of pledges and payments of contributions.

5.7 Contributions not immediately required for the purposes of the general trust fund shall be used to restore any drawdown from the working capital reserve and to fulfil payment obligations to the budget, starting with the oldest obligation. Any remaining contributions that are not immediately required shall be invested in such a way as to place primary emphasis on minimizing the risk to the general trust fund while ensuring the liquidity necessary to meet the cash-flow requirements of the institutions established under the Agreement. In addition, investments shall be selected on the basis of achieving the highest reasonable rate of return and shall accord with the principles of the United Nations. The Conference of the Parties may develop additional guidelines for investments. Income derived from investments shall ordinarily be credited to the general trust fund.

5.8 Any expected miscellaneous income shall be estimated conservatively, and lower-than-expected income should be offset by reduced expenditures during the applicable budget cycle.

6. Auditing and accounts

Option I for draft rules 6.1 and 6.2

6.1 The accounts and financial management of all funds governed by the present rules shall be subject to the internal and external audit process of the United Nations [as laid down in the Financial Regulations and Rules of the United Nations].

6.2 An interim statement of accounts for the [first year of the] financial period shall be provided to the Conference of the Parties [during the second year of the period], and a final audited statement of accounts for the full financial period shall be provided to the Conference of the Parties as soon as possible after the accounts for the financial period are closed.

Option II for rules 6.1 to 6.6 (*International Seabed Authority model*)

Accounts

6.1 The head of the secretariat shall submit accounts [for the financial period] [for every calendar year]. In addition, the head of the secretariat shall maintain, for management purposes, such accounting records as are necessary [, including interim accounts for the first calendar year of the financial period].

6.2 The accounts of the funds established under the Agreement shall be presented in United States dollars. Accounting records may, however, be kept in such currency or currencies as the head of the secretariat may deem necessary.

6.3 Appropriate separate accounts shall be maintained for all funds, reserve and special accounts.

6.4 The accounts for the financial period shall be submitted by the head of the secretariat to the auditor not later than 31 March following the end of the financial period.

Audits

6.5 The Conference of the Parties shall appoint [, by consensus,] an internationally recognized independent auditor with experience in the audit of international organizations. The independent auditor shall be appointed for a period of four years and may be reappointed for one term. The auditor shall be completely independent and solely responsible for the conduct of the audit.

6.6 The audit shall [be conducted on an annual basis and] be conducted in conformity with generally accepted common auditing standards and, subject to any special directions of the Conference of the Parties, in accordance with additional terms of reference as may be developed by the Conference of the Parties.

7. Administrative support costs

The Conference of the Parties shall reimburse the United Nations for the services provided to the Conference of the Parties, its subsidiary bodies and the secretariat from the general trust fund, on such terms as may from time to time be agreed upon between the Conference of the Parties and the United Nations or, in the absence of such agreement, in accordance with the general policy of the United Nations.

8. General provisions

8.1 Any amendment to the present rules shall be adopted by the Conference of the Parties by consensus. Such amendments shall not create retroactive financial obligations for Parties.

8.2 The present rules shall become effective on the date they are approved by the Conference of the Parties.

8.3 All officials involved in the management of the financial resources for the Agreement shall be guided by the principles of effective and efficient financial management and the exercise of economic prudence.

Annex VI

Draft memorandum of understanding between the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction and the Council of the Global Environment Facility

The Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction (hereinafter “the Conference of the Parties”) and the Council of the Global Environment Facility (hereinafter “the Council”),

Recalling paragraph 3 of article 52 of the Agreement, which establishes a mechanism for the provision of adequate, accessible, new and additional and predictable financial resources under the Agreement and provides that the mechanism shall assist developing States Parties in implementing the Agreement, including through funding in support of capacity-building and the transfer of marine technology, and perform other functions as set out in article 52 of the Agreement for the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction,

Recalling also paragraph 4 of article 52 of the Agreement, which provides that the mechanism shall include the Global Environment Facility trust fund, along with a special fund and a voluntary trust fund,

Recalling further paragraph 6 of article 52 of the Agreement, which provides that the special fund and the Global Environment Facility trust fund shall be utilized in order to: (a) fund capacity-building projects under the Agreement, including effective projects on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction and activities and programmes, including training related to the transfer of marine technology; (b) assist developing States Parties in implementing the Agreement; (c) support conservation and sustainable use programmes by Indigenous Peoples and local communities as holders of traditional knowledge; (d) support public consultations at the national, subregional and regional levels; and (e) fund the undertaking of any other activities as decided by the Conference of the Parties,

Recalling paragraph 7 of article 52 of the Agreement, which provides that the financial mechanism should seek to ensure that duplication is avoided, and complementarity and coherence promoted, among the utilization of the funds within the mechanism,

Recalling also paragraph 9 of article 52 of the Agreement, which provides that, for the purposes of the Agreement, the mechanism shall function under the authority, where appropriate, and guidance of the Conference of the Parties and shall be accountable thereto, and that the Conference of the Parties shall provide guidance on overall strategies, policies, programme priorities and eligibility for access to and utilization of financial resources,

Recalling further paragraph 10 of article 52 of the Agreement, which provides that the Conference of the Parties and the Global Environment Facility shall agree upon arrangements to give effect to the relevant paragraphs of article 52 of the Agreement at the first meeting of the Conference of the Parties,

Recalling paragraph 13 of article 52 of the Agreement, which provides that, in the light of capacity constraints, Parties shall encourage international organizations to grant preferential treatment to, and consider the specific needs and special requirements of developing States Parties, in particular the least developed countries, landlocked developing countries and small island developing States, and taking into account the special circumstances of small island developing States and of least developed countries,

Recalling also paragraph 16 of article 52 of the Agreement, which provides that the Conference of the Parties shall undertake a periodic review of the financial mechanism to assess the adequacy, effectiveness and accessibility of financial resources, including for the delivery of capacity-building and the transfer of marine technology, in particular for developing States Parties, and recalling that this periodic review should be carried out in a transparent and equitable manner,

Recalling further article 7 of the Agreement, which sets out the general principles and approaches by which Parties to the Agreement shall be guided in order to achieve the objectives of the Agreement,

Recalling paragraph 6 of the Instrument for the Establishment of the Restructured Global Environment Facility, as amended on 25 August 2023 at the seventh Global Environment Facility Assembly, which provides that the Global Environment Facility shall operate as one of the entities comprising the financial mechanism of the Agreement,

Having consulted each other, and taking into account the relevant aspects of their governance structures as reflected in their constituent instruments,

Have reached the following mutual understanding:

Definitions

1. For the purpose of the present memorandum of understanding:

(a) “Agreement” means the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction;

(b) “Assembly” means the Assembly of the Global Environment Facility as defined in the Instrument for the Establishment of the Restructured Global Environment Facility;

(c) “Conference of the Parties” means the Conference of the Parties to the Agreement;

(d) “Council” means the Council of the Global Environment Facility as defined in the Instrument for the Establishment of the Restructured Global Environment Facility;

(e) “GEF” means the mechanism established by the Instrument for the Establishment of the Restructured Global Environment Facility, including its Assembly, Council and secretariat;

(f) “Instrument” means the Instrument for the Establishment of the Restructured Global Environment Facility;

(g) “Party” means Party to the Agreement.

Purpose

2. The purpose of the present memorandum of understanding is to make provision for the relationship between the Conference of the Parties and GEF in order to give effect to the provisions relating to the GEF trust fund in paragraphs 3, 4, 6, 7, 9, 10 and 16 of article 52 of the Agreement and paragraphs 6, 26 and 27 of the Instrument, in support of the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction.

Guidance from the Conference of the Parties

3. In accordance with paragraph 9 of article 52 of the Agreement, the Conference of the Parties will provide the Council with guidance on overall strategies, policies, programme priorities and eligibility for access to and utilization of financial resources, including, as appropriate, for Indigenous Peoples and local communities, as well as any revisions to such guidance as it may adopt. The Conference of the Parties will, after each of its ordinary meetings, communicate to the Council any guidance approved by the Conference of the Parties concerning the mechanism. Subsequently, the Conference of the Parties will agree with the Council upon any additional arrangement beyond the present memorandum of understanding that may be necessary.

Conformity with guidance from the Conference of the Parties

4. The Council will ensure the effective operation of the GEF trust fund in serving as part of the financial mechanism under the Agreement, as a source of funding for activities for the purposes of the Agreement, in conformity with the guidance provided to it by the Conference of the Parties.

5. The Council may raise with the Conference of the Parties any matter arising from the guidance adopted by the Conference of the Parties. In particular, if the Conference of the Parties provides guidance to the Council subsequent to its first meeting, the Council may consult with the Conference of the Parties to update and clarify existing guidance in the light of any new or additional guidance that it receives.

6. The Council may seek guidance from the Conference of the Parties on any other matters it considers relevant to its serving as part of the financial mechanism under the Agreement. The Conference of the Parties will take the needs and priorities of developing States Parties fully into account when addressing matters brought before it by the Council.

7. (a) Funding decisions for specific projects and activities should be agreed between the developing State Party concerned and the Council in accordance with the overall strategies, policies, programme priorities and eligibility for access to and utilization of financial resources established by the Conference of the Parties. The Council is responsible for approving GEF work programmes, taking due consideration of the guidance from the Conference of the Parties;

(b) If a Party considers that a decision of GEF regarding a specific project is not consistent with the guidance provided by the Conference of the Parties in the context of the Agreement, and if after consideration the Conference of the Parties decides that the concern of the relevant Party has merit, the Conference of the Parties will seek clarification from the Council by the next ordinary meeting of the Conference of the Parties and analyse the observations presented to it by the concerned Party and the response by the Council;

(c) In the event that the Conference of the Parties considers that the project decision by GEF is not consistent with the overall strategies, policies, programme priorities and eligibility for access to and utilization of financial resources established by the Conference of the Parties, it may ask for a reconsideration of that decision in due time and/or as appropriate and request the Council to propose and implement a course of action to address the concerns regarding the project in question, within a timeline to be specified by the Conference of the Parties and in consideration of the GEF project cycle.

8. Decisions by GEF under the present memorandum of understanding will be aimed at promoting efficient access to funding, including through simplified application and approval procedures.

Reporting

9. GEF will prepare and submit, for consideration by the Conference of the Parties at each of its ordinary meetings, reports on its activities related to the Agreement and on the conformity of those activities with the guidance received from the Conference of the Parties. Such reports will be made available to the Conference of the Parties through its secretariat as soon as possible prior to the commencement of the relevant meeting.

10. Reports submitted by the Council will include information on:

(a) All GEF-financed projects and activities carried out in implementing the Agreement, whether such projects and activities are carried out by the GEF implementing agencies, by the GEF secretariat or by executing agencies implementing GEF-financed projects and activities. To that end, the Council will require all such bodies, with respect to GEF-financed projects and activities, to comply with GEF policy on disclosure of information;

(b) The consistency of those activities with the guidance from the Conference of the Parties, as well as any decision of the Conference of the Parties communicated to the Council under article 52 of the Agreement.

11. In particular, the reports will provide, inter alia:

(a) Information on how GEF has responded to the guidance provided by and decisions of the Conference of the Parties, including, where appropriate, through the incorporation of the guidance into GEF strategies, operational policies, programming directions and programme priorities, as well as the identification of potential areas of improvement;

(b) Information on access modalities;

(c) A synthesis of projects approved by GEF and projects being implemented during the reporting period in relation to the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, with an indication of respective GEF and other resources allocated to each such project and the implementation status of each project;

(d) A list of project proposals submitted for approval to GEF, through the GEF implementing agencies, by eligible Parties, in relation to the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, including reporting on their approval status, an indication of the total financial resources allocated to the approved projects, and, in cases of projects not approved, the reasons therefor;

(e) A review of the project activities approved by GEF and their outcomes, including information on funding, main challenges and progress in implementation, in line with relevant reporting guidelines and the streamlining efforts within GEF.

12. The Council will also report on GEF monitoring and evaluation activities concerning projects in relation to the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction.

13. The Council will also provide information on other matters concerning the discharge of functions under article 52 of the Agreement in relation to the GEF trust fund, as may be requested by the Conference of the Parties. If the Council has difficulties in responding to any such request, it will explain its concerns to the Conference of the Parties, and the Conference of the Parties and the Council will find a mutually acceptable solution, as appropriate.

14. The Council will include in its reports to the Conference of the Parties any views that it may have regarding the guidance provided by the Conference of the Parties.

15. The Conference of the Parties may raise with the Council any matter arising from the reports received from the Council and seek clarification and explanation from the Council.

Monitoring and evaluation

16. The Conference of the Parties will conduct a periodic review of the financial mechanism, including the GEF trust fund, to assess the adequacy, effectiveness and accessibility of financial resources, including for the delivery of capacity-building and the transfer of marine technology, in particular for developing States Parties, as provided for in paragraph 16 of article 52 of the Agreement, and taking into account, inter alia, considerations under paragraphs 14 and 15 of article 52 of the Agreement.

17. In preparing its review of the GEF trust fund as part of the financial mechanism, the Conference of the Parties will, as appropriate, take into account the reports of the GEF Independent Evaluation Office and the views of GEF, as well as all other relevant independent assessments. The GEF Independent Evaluation Office will consult, as appropriate, the secretariat of the Agreement when preparing evaluations of the activities of GEF related to the Agreement.

18. The Conference of the Parties will communicate the results of such reviews, including any recommendation, to GEF. The Council will report on actions taken to address matters highlighted in the results in its subsequent report to the Conference of the Parties.

Determination of funding needed and available

19. The relevant decisions of the Conference of the Parties on the identification and assessment of funding needs and resource mobilization will be used to inform the resource mobilization processes of GEF, in particular its replenishment processes. In its reports to the Conference of the Parties, the Council will include information on how GEF implemented the recommendations of the Finance Committee on financial resources, as well as on overall and targeted resource mobilization and the financial resources available for the GEF trust fund serving as part of the financial mechanism under the Agreement.

Complementarity and coherence within the financial mechanism

20. In serving as part of the financial mechanism under the Agreement, the GEF Council will seek to ensure that duplication is avoided and that complementarity and coherence is promoted among the utilization of the funds within the financial mechanism, in particular the special fund established under paragraph 4 (b) of article 52 of the Agreement.

Cooperation between secretariats

21. The secretariat of the Agreement and the secretariat of GEF will communicate and cooperate with each other and consult on a regular basis to facilitate the effectiveness of GEF in performing its functions as set out in paragraph 6 of article 52 of the Agreement.

22. In particular, in accordance with the GEF project cycle, the secretariat of the Agreement will be invited to comment on the project proposals related to the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction under consideration for inclusion in a proposed work programme, especially with regard to the consistency of project proposals with the guidance provided by the Conference of the Parties.

23. The secretariats of the Agreement and GEF will reciprocally consult with each other on draft texts of documents relevant to both the Agreement and GEF prior to issuing the final texts of such documents and take any comments into account in their finalization.

24. Official documentation of GEF, including information on project activities, and of the Agreement will be made available on the website of GEF and the website dedicated to the Agreement.

Reciprocal representation

25. On a reciprocal basis and in accordance with the applicable rules of procedure, representatives of GEF will be invited to attend meetings of the Conference of the Parties and relevant subsidiary bodies, and representatives of the Agreement will be invited to attend meetings of the Council, the Assembly and other relevant meetings, including the replenishment meetings.

Review and amendments

26. The present memorandum of understanding may be reviewed in the light of the periodic review of the financial mechanism and may be amended at any time by written consent between the Conference of the Parties and the Council.

Interpretation

27. If differences arise in the interpretation of the present memorandum of understanding, the Conference of the Parties and the Council will make every effort to reach a mutually acceptable solution.

Entry into effect

28. The present memorandum of understanding will come into effect upon approval by the Conference of the Parties and by the Council.

Termination

29. The present memorandum of understanding may be terminated by either Party giving six months' notice in writing to the other. The termination will not affect the validity or duration of activities initiated before such termination.

Annex VII

Draft decision for consideration by the first meeting of the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction on arrangements to enhance cooperation with relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies

The Conference of the Parties,

Recalling that the objective of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction, as set out in its article 2, is to ensure the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, for the present and in the long term, through effective implementation of the relevant provisions of the Convention and further international cooperation and coordination,

Recalling also that article 5 of the Agreement addresses the relationship between the Agreement and the Convention and relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies and provides, in paragraph 1, that the Agreement shall be interpreted and applied in the context of and in a manner consistent with the Convention and, in paragraph 2, that the Agreement shall be interpreted and applied in a manner that does not undermine those instruments, frameworks and bodies and that promotes coherence and coordination with those instruments, frameworks and bodies,

Recalling further that Parties are required, pursuant to article 8, paragraph 1, of the Agreement, to cooperate under the Agreement for the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, including through strengthening and enhancing cooperation with and promoting cooperation among relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies in the achievement of the objectives of the Agreement, and that, pursuant to article 8, paragraph 2, Parties shall endeavour to promote, as appropriate, the objectives of the Agreement when participating in decision-making under such instruments, frameworks and bodies,

Recalling that, with regard to arrangements to enhance cooperation, pursuant to article 47, paragraph 6 (c), of the Agreement, the Conference of the Parties shall promote, including by establishing appropriate processes, cooperation and coordination with and among relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies, with a view to promoting coherence among efforts towards the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, and that the Conference of the Parties is also required, pursuant to article 48, paragraph 3, to promote transparency in the implementation of the Agreement, including through the public dissemination of information and the facilitation of the participation of, and consultation with, relevant global, regional, subregional and sectoral bodies,

Recalling also that, under article 50, paragraph 4 (d), of the Agreement, the secretariat is required to facilitate cooperation and coordination, as appropriate, with the secretariats of other relevant international bodies and, in particular, enter into such

administrative and contractual arrangements as may be required for that purpose and for the effective discharge of its functions, subject to approval by the Conference of the Parties,

Recalling further that, under article 51, paragraph 4, of the Agreement, the Clearing-House Mechanism shall be managed by the secretariat, without prejudice to possible cooperation with other relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies as determined by the Conference of the Parties, including the Intergovernmental Oceanographic Commission of the United Nations Educational, Scientific and Cultural Organization, the International Seabed Authority, the International Maritime Organization and the Food and Agriculture Organization of the United Nations,

Recognizing the role and contribution of relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies in the attainment of the general objectives of the Agreement, and recognizes that cooperation with these instruments, frameworks and bodies is crucial in ensuring the effective implementation of the Agreement,

Having considered the report of the Preparatory Commission for the Entry into Force of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction and the Convening of the First Meeting of the Conference of the Parties to the Agreement,¹ in particular concerning arrangements to enhance cooperation with relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies,

1. *Decides* that all cooperation and coordination with relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies, which is to be carried out by States Parties and the institutions and bodies established under the Agreement, to the extent and scope provided for in the Agreement, shall promote the objectives of the Agreement and be guided, as appropriate, by the following:

(a) The need for regular engagement and consultations with relevant instruments, frameworks and bodies on matters related to the Agreement and facilitation of their participation, as observers, in the work of the Conference of the Parties and its subsidiary bodies;

(b) The need for a gradual approach towards and strategic prioritization of early cooperation arrangements with relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies whose mandates directly intersect with the objectives of the Agreement, so as to ensure its effective and timely implementation;

(c) The recognition of the mandate complementarity and various synergies between the Agreement and relevant instruments, frameworks and bodies, while not undermining them, and the need to develop strategies to manage overlapping mandates and avoid duplication of efforts, including, where appropriate, by leveraging the expertise and best practices of relevant instruments, frameworks and bodies and existing cooperation and coordination arrangements and platforms;

(d) The promotion of equity and inclusiveness in cooperation arrangements under the Agreement, including by taking into account the needs and interests of all relevant stakeholders, as well as the prioritization of the full participation of developing States, in particular small island developing States and least developed

¹ A/AC.296/2026/9.

countries on the basis of full recognition of their special circumstances, and landlocked developing countries, in any such arrangements;

(e) The recognition of the different levels of formality required to operationalize cooperation under the Agreement, which may include, as appropriate, the establishment of formal memorandums of understanding, agreements and collective arrangements developed in collaboration with relevant instruments, frameworks and bodies. Cooperation may also be carried out through informal modes, such as: informal liaison groups, working groups, committees and inter-agency coordination mechanisms for technical coordination, and informal consultations; information and technical exchanges, and data-sharing, subject to applicable confidentiality and data protection requirements; and joint workplans or other joint activities of an ad hoc nature that promote the objectives of the Agreement, including capacity-building and training programmes;

(f) The importance of ensuring continuity in cooperation, including through standing arrangements with relevant instruments, frameworks and bodies, supplemented by ad hoc engagement as necessary;

(g) The need for a flexible approach to cooperation under the Agreement and the need to maintain a flexible approach to operationalizing such cooperation that allows for cooperation arrangements to adapt to emerging needs and priorities that evolve over time, while taking into account the practicality of arrangements and complementarity in activities, as well as existing legal obligations and standards, including the need to consider the respective capacities, resources and operational limits, and the importance of seeking coherence and complementarity with the work cycles, of the instruments, frameworks and bodies concerned;

(h) The importance of enabling reciprocity and the provision of mutual support in cooperation arrangements, including mutual recognition of and collaboration across mandates and co-development of cooperative mechanisms and activities, which may include those that reflect the priorities of developing States, where appropriate;

(i) The importance of transparency, accessibility, reliability and coherence with regard to modalities, procedures and communication in all engagement and cooperation, while ensuring the protection of confidential information, as well as systems interoperability and the harmonization of reporting requirements;

(j) The need to consider cost-effectiveness and the use of cost-sharing arrangements, as appropriate, as well as ensuring that such arrangements are designed to promote efficiency in the use of existing financial, technical and human resources;

(k) The need to monitor and review the effectiveness of cooperative arrangements under the Agreement and the contribution they make to implementation, including through periodic assessments, and to consider any necessary action, as appropriate;

2. *Invites* relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies to cooperate, within their mandates, with the institutions and bodies established under the Agreement, in furtherance of the objectives of the Agreement and, to that end, encourages the participation of such instruments, frameworks and bodies as observers in the meetings of the Conference of the Parties and the subsidiary bodies established under the Agreement;

3. *Calls upon* Parties to the Agreement to promote cooperation with and among relevant instruments framework and bodies;

4. *Requests* the subsidiary bodies established under the Agreement to identify, in every programme of work, their needs with regard to cooperation and coordination with relevant instruments, frameworks and bodies to ensure the effective and timely implementation of the tasks identified in that programme of work;

5. *Requests* the secretariat to seek membership in UN-Oceans;

6. *Also requests* the secretariat to engage and consult with the secretariats of other relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies, including through UN-Oceans and by inviting relevant instruments, frameworks and bodies to provide information regarding their views on possible forms of cooperation with those instruments, frameworks and bodies and to report to the Conference of the Parties on this issue at its second meeting;

7. *Further requests* the secretariat, as appropriate, to develop, using input from the programmes of work to be developed by the subsidiary bodies established under the Agreement, a joint programme of work of the Conference of the Parties, the secretariat and those subsidiary bodies to support the implementation of cooperation activities with relevant instruments, frameworks and bodies for the achievement of the objectives of the Agreement, for consideration by the Conference of the Parties at its third meeting, and further requests the secretariat to update the joint programme of work on a regular basis;

8. *Requests* the secretariat to consider including appropriate resources in the budget to be adopted by the Conference of the Parties in accordance with article 47, paragraph 6 (e), of the Agreement, to support cooperation and coordination with relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies, taking duly into account any prevailing budgetary constraints;

9. *Also requests* the secretariat to include, in its report on the execution of its function under article 50, paragraph 4 (e), of the Agreement, a section on cooperation and coordination with relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies, including the support provided by the secretariat to subsidiary bodies in these processes;

10. *Decides* to include a standing item on cooperation and coordination with relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies on the agenda of the Conference of the Parties.

Annex VIII

Draft decision for consideration by the first meeting of the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction concerning the operationalization of the special fund established under the Agreement*

The Conference of the Parties,

Recalling the objectives, principles, provisions and obligations set forth in the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction, in particular its articles 2, 7, 14 and 52,

Building on lessons learned from, as well as experiences gained and operating modalities under, existing funds under relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies,

Desiring to give effect to the principle of full recognition of the special circumstances of small island developing States and of least developed countries, and acknowledging the special interests and needs of landlocked developing countries, as set out in article 7, paragraphs (m) and (n), of the Agreement,

Recalling article 52, paragraph 12, of the Agreement, which provides that eligibility for access to funding under the Agreement shall be distributed according to equitable sharing criteria, taking into account the needs for assistance of Parties with special requirements, in particular the least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States and coastal African States, archipelagic States and developing middle-income countries, and taking into account the special circumstances of small island developing States and of least developed countries,

1. *Decides* to establish a transparent, timebound and cost-effective ad hoc committee to assist in the operationalization of the special fund that forms part of the financial mechanism established under article 52 of the Agreement, for the provision of adequate, accessible, new and additional and predictable financial resources under the Agreement, in accordance with the modalities set out below;

2. *Also decides* that the ad hoc committee established in paragraph 1 above shall develop and recommend a constitutive document for the special fund, in accordance with the terms of reference contained in the annex to the present decision, for the consideration and adoption by the Conference of the Parties at its second ordinary meeting;

3. *Further decides* that the ad hoc committee shall be composed of 35 members, possessing the necessary experience and expertise, notably in the areas of finance, conservation and sustainable use of marine biological diversity, and/or the law of the sea, with:

* Following further informal consultations among delegations on the last day of the third session of the Preparatory Commission, as conveyed to the Co-Chairs, the bracketed text in paragraphs 8 and 9 of the draft decision would be removed.

- (a) 12 members from developed Parties, Western Europe and Other, as well as Eastern Europe;
 - (b) 19 members from developing States Parties, as follows:
 - (i) 4 members from Africa;
 - (ii) 4 members from Asia-Pacific;
 - (iii) 4 members from Latin America and the Caribbean;
 - (iv) 2 members from small island developing States;
 - (v) 2 members from least developed countries;
 - (vi) 1 member from landlocked developing countries;
 - (vii) 2 members from the categories of developing States Parties referred to in the Agreement, not included in subparagraphs (iv) to (vi), to be filled on a rotational basis following an agreed sequence, in a manner that ensures geographic distribution, balanced participation over time and avoids the concentration of representation among a limited number of States;
 - (c) 2 members representing Indigenous Peoples, taking into account the need for equitable distribution across the seven Indigenous sociocultural regions recognized by the United Nations, to the greatest extent possible;
 - (d) 2 members representing local communities;
4. *Invites* the United Nations regional groups and the relevant categories of States or constituencies to select their respective representatives to serve as members of the ad hoc committee, taking into account the need for gender balance, and to communicate their selection to the secretariat no later than 28 February 2027;
5. *Decides* to have four in-person meetings of the ad hoc committee, and also decides that the Co-Chairs of the ad hoc committee may convene informal virtual consultations, taking into account different time zones and the challenges and resource constraints faced by developing States Parties, in particular the least developed countries, landlocked developing countries and small island developing States;
6. *Also decides* that the meetings of the ad hoc committee will be open to observers, including from States not Party to the Agreement, in accordance with the rules of procedure for the Conference of the Parties, as well as to designated advisers of the members;
7. *Requests* the head of the secretariat, in consultation with the President of the Conference of the Parties, to convene the initial in-person meeting no later than 31 March 2027;
8. *Decides* that, subject to the availability of funds, assistance for members of the ad hoc committee [and one designated adviser per member] from developing States Parties, in particular the least developed countries, landlocked developing countries and small island developing States, to attend the meetings of the committee shall be provided through the voluntary trust fund referred to in article 52, paragraph 4 (a), of the Agreement;
- [9. *Also decides* that assistance for members of the ad hoc committee [and one designated adviser per member] representing Indigenous Peoples and local communities shall be provided through applicable trust fund for attendance by Indigenous Peoples and local communities;]

10. *Further decides* that adequate financial resources shall be made available for the work of the ad hoc committee;

11. *Requests* the head of the secretariat, in consultation with the President of the Conference of the Parties, to make arrangements to allow the possibility for relevant United Nations agencies, international financial institutions and multilateral development banks, along with the Global Environment Facility, to second suitably qualified staff with pertinent expertise, to support the work of the ad hoc committee;

12. *Reaffirms* that, in accordance with article 14, paragraph 6, of the Agreement, after the entry into force of the Agreement, developed Parties shall make annual contributions to the special fund referred to in article 52, and that each such Party's rate of contribution shall be 50 per cent of that Party's assessed contribution to the budget adopted by the Conference of the Parties under article 47, paragraph 6 (e), of the Agreement.

Annex

Terms of reference for the ad hoc committee to assist in the operationalization of the special fund

1. The ad hoc committee shall assist in the operationalization of the special fund, through the development and recommendation of a constitutive document, in accordance with the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction, including its articles 2, 7, 14 and 52, the present decision and the present terms of reference, for the consideration of and adoption by the Conference of the Parties at its second meeting.
2. The constitutive document for the special fund shall address, inter alia:
 - (a) Scope;
 - (b) General principles and approaches;
 - (c) Equitable, effective and representative governance structure;
 - (d) Cost-effective and efficient administration, including secretariat and trustee functions;
 - (e) Legal status;
 - (f) Operational modalities, including access modalities;
 - (g) Financial resources from all sources;
 - (h) Ability to use innovative financial tools to leverage additional resources;
 - (i) Methods to ensure that duplication is avoided, and complementarity and coherence promoted, among the utilizations of the funds within the financial mechanism of the Agreement and with existing funds under other relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies;
 - (j) Reporting;
 - (k) Accountability, periodic review, monitoring and evaluation;
 - (l) Independent evaluation and redress mechanisms.
3. The ad hoc committee shall be chaired by two Co-Chairs, one from a developed State Party and one from a developing State Party, taking into account the need for gender balance.
4. The Co-Chairs shall collaborate in chairing meetings of the ad hoc committee and any intersessional work, as appropriate. The Co-Chairs shall, inter alia, declare the opening and closing of meetings, accord the right to speak, announce decisions and facilitate the proceedings of meetings and the maintenance of order at meetings.
5. Members of the ad hoc committee that are from States Parties shall make every effort to adopt recommendations to the Conference of the Parties by consensus. If all efforts to reach consensus have been exhausted, recommendations to be submitted to the Conference of the Parties shall be adopted by a vote in accordance with rule 29 of the rules of procedure of the Conference of the Parties. When any matter is subject to a vote, the ad hoc committee shall ensure that the views of all members are fairly reflected in its report to the Conference of the Parties.
6. A simple majority of the members of the ad hoc committee shall constitute a quorum.
7. The ad hoc committee may invite experts to support its work.

Annex IX

Draft terms of reference for the voluntary trust fund under the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable use of Marine Biological Diversity of Areas beyond National Jurisdiction*

Eligibility

1. The purpose of the voluntary trust fund (the fund), established under article 52, paragraph 4, of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction, is to facilitate the participation of representatives of developing States Parties, in particular the least developed countries, landlocked developing countries and small island developing States, in the meetings of the bodies established under the Agreement.

Definitions

2. “Meetings of the bodies established under the Agreement” include meetings of the Conference of the Parties and its subsidiary bodies.

3. References to representatives of developing States Parties in these terms of reference are understood to also include members of subsidiary bodies who are eligible to receive assistance from the fund.

Use of the fund

4. The fund will facilitate the participation of representatives of developing States Parties, in particular least developed countries, landlocked developing countries and small island developing States, in the meetings of the bodies established under the Agreement, including meetings of the Bureau of the Conference of the Parties, as well as meetings of ad hoc groups, working groups and subcommittees established under the Conference of the Parties or its subsidiary bodies, subject to the availability of funds.

5. Unless the Conference of the Parties decides otherwise, requests for assistance from the fund are limited to [at least] one representative for each developing State Party at each in-person meeting for which assistance is made available.

6. Having regard for the status of the fund, and upon notification from the head of the secretariat, assistance from the fund may be extended to up to two representatives for each developing State Party that is a least developed country, landlocked developing country or small island developing State at each in-person meeting for which assistance is made available.

* Following further informal consultations among delegations on the last day of the third session of the Preparatory Commission, as conveyed to the Co-Chairs, the brackets in paragraph 5 would be removed, the wording in paragraph 6 would be amended to read “... up to two representatives for each developing State Party, in particular least developed countries, landlocked developing countries and small island developing States, ...”, and subparagraph (a) of paragraph 9 would be moved to the end of paragraph 10.

7. The fund will cover the costs of the economy round-trip air fares, terminal expenses and daily subsistence allowance of the representatives designated by their Governments and selected as recipients of assistance from the fund.

Application process

8. The head of the secretariat shall notify developing States Parties that applications for financial assistance can be submitted at the time of notification of the respective meeting.

9. Each request for financial assistance shall be considered by the secretariat. Consideration of requests for financial assistance shall be guided by:

(a) The need to give priority to requests for assistance from the least developed countries, landlocked developing countries and small island developing States;

(b) The need for equitable geographical representation;

(c) The timeliness of applications;

(d) The completeness of applications; and

(e) The availability of funds.

10. If the number of requests for assistance exceeds the availability of funds, the secretariat may engage the Bureau to assist the secretariat in the evaluation of the requests for assistance and the selection of the recipients.

Implementing office

11. The secretariat will administer the fund and act as the implementing office for the fund.

Status of the fund

12. The head of the secretariat shall, at each ordinary meeting, report to the Conference of the Parties on the use and status of the fund. The reports shall include information on contributions received, disbursements made and administrative costs and shall include data disaggregated by categories of developing States Parties.

13. The head of the secretariat shall invite Parties to contribute to the voluntary trust fund at least six months prior to each ordinary meeting of the Conference of the Parties, providing information on the financial need, and encouraging Parties to ensure that any voluntary contributions are made at least three months before the meeting.

Financial rules

14. The financial rules governing the funding of the Conference of the Parties to the Agreement and the funding of the secretariat and any subsidiary bodies shall apply to the fund.

15. The financial resources specified in rules 5.1 (b) and (c) of the financial rules that are earmarked to the voluntary trust fund shall be credited to that fund.

Publicity

16. The secretariat will make publicly available details of the fund, including details on application procedures and assistance provided. The secretariat should strive to explore ways to promote contributions to and knowledge of the fund through public and private sources, both national and international, including, but not limited to, contributions from States, international financial institutions, existing funding mechanisms under global and regional instruments, donor agencies, intergovernmental organizations, non-governmental organizations and natural and juridical persons, and through public-private partnerships.

Revision

17. The Conference of the Parties may revise the above terms, if circumstances so require.

Annex X

Key points on reporting requirements under the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction

The Preparatory Commission for the Entry into Force of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction and the Convening of the First Meeting of the Conference of the Parties to the Agreement held an exchange of views on reporting requirements during its second session, on the basis of a note by the Secretariat on this issue ([A/AC.296/2025/17](#)). The following key points emerged from this exchange of views.

The Conference of the Parties to the Agreement could consider the following approaches:

- Striking a balance between ensuring transparency, accountability and confidentiality in reporting, while not being onerous for Parties in terms of cost and time requirements.
- Developing reporting requirements that are streamlined and standardized, avoiding duplication between reporting procedures under the Agreement and those under other instruments.
- Developing reporting requirements gradually, as the implementation of the Agreement advances.
- Developing reporting templates and user guides with input from relevant subsidiary bodies.

In addition, the Conference of the Parties could consider the following elements when operationalizing reporting requirements:

- The possibility of aligning the interval of reporting for Parties, subsidiary bodies and the secretariat with the meeting cycles of the Conference of the Parties and its subsidiary bodies, as appropriate.
- The use of user-friendly, multilingual and electronic submission modalities, while maintaining the possibility of offline submission of reports.
- The possibility of developing a reporting format covering all reporting requirements for Parties in a single report, which could include segments on specific parts of the Agreement and optional reporting segments.
- The possibility of developing simplified reporting formats or of allowing Parties to submit joint or collective reports.
- The possibility for developing countries to indicate, in their reports, data deficiencies or capacity gaps.
- The provision of capacity-building support, technical assistance and funding support to assist States, in particular developing countries, in complying with reporting requirements.
- The role of the subsidiary bodies, the secretariat and the Clearing-House Mechanism in reporting procedures, including in the submission, follow-up and publication of the reports of Parties.

Annex XI

List of documents

Organizational meeting

A/AC.296/2024/1	Agenda
A/AC.296/2024/2	Organization of work
A/AC.296/2024/3	Matters to be addressed at the first meeting of the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction: note by the Secretariat
A/AC.296/2024/4	Statement by the Co-Chair of the Preparatory Commission at the closing of the organizational meeting
A/AC.296/2024/INF/1	Information for participants: note by the Secretariat
A/AC.296/2024/INF/2/Rev.1	Final list of participants

First session

A/AC.296/2025/1^a	Agenda of the Preparatory Commission
A/AC.296/2025/2^a	Programme of work of the Preparatory Commission
A/AC.296/2025/3	Rules of procedure for the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction: aid to discussions and negotiations prepared by the Co-Chairs
A/AC.296/2025/4	Terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies established under the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction, including the selection process for their members: note by the Secretariat
A/AC.296/2025/5	Arrangements for the functioning of the secretariat, including its seat: note by the Secretariat
A/AC.296/2025/6	Issues pertaining to the operation of the Clearing-House Mechanism under the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction

- [A/AC.296/2025/7](#) Financial rules governing the funding of the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction and the funding of the secretariat and any subsidiary bodies: aid to discussions and negotiations prepared by the Co-Chairs
- [A/AC.296/2025/8](#) Arrangements with the Global Environment Facility to give effect to the relevant provisions on funding of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction: aid to discussions and negotiations prepared by the Co-Chairs
- [A/AC.296/2025/9](#) Statement by the Co-Chairs of the Preparatory Commission at the closing of the first session
- [A/AC.296/2025/INF/1](#) Information for participants: note by the Secretariat

^a Adopted on the understanding that the agenda and the programme of work would apply to all substantive sessions of the Commission.

Second session

- [A/AC.296/2025/12](#) Rules of procedure for the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction: revised aid to discussions and negotiations prepared by the Co-Chairs
- [A/AC.296/2025/13](#) Financial rules governing the funding of the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction and the funding of the secretariat and any subsidiary bodies: revised aid to discussions and negotiations prepared by the Co-Chairs
- [A/AC.296/2025/14](#) Arrangements with the Global Environment Facility to give effect to the relevant provisions on funding of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction: revised aid to discussions and negotiations prepared by the Co-Chairs
- [A/AC.296/2025/15](#) Draft terms of reference for an informal group on the technical aspects of the operationalization of the

	Clearing-House Mechanism under the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction: note by the Co-Chairs
A/AC.296/2025/16	Arrangements to enhance cooperation with relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies: note by the Secretariat
A/AC.296/2025/17	Reporting requirements pursuant to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction: note by the Secretariat
A/AC.296/2025/18	Operationalization of other provisions on financial resources and mechanism under the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction: note by the Secretariat
A/AC.296/2025/19	Statement by the Co-Chairs of the Preparatory Commission at the closing of the second session
A/AC.296/2025/INF/2	Information for participants: note by the Secretariat
A/AC.296/2025/INF/3	Matrix on the terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies established under the Agreement: note by the Co-Chairs
A/AC.296/2025/INF/4	Matrix on the arrangements for the secretariats of selected instruments representative of each of the secretariat models: note by the Secretariat
A/AC.296/2025/CRP.1	Refreshed text of a draft memorandum of understanding between the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction and the Council of the Global Environment Facility
A/AC.296/2025/CRP.2	Revised draft terms of reference for an informal group on the technical aspects of the operationalization of the Clearing-House Mechanism under the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction
A/AC.296/2025/CRP.3	Refreshed text of draft rules of procedure for the Conference of the Parties
A/AC.296/2025/CRP.4	Refreshed text of draft financial rules governing the funding of the Conference of the Parties

Third session

A/AC.296/2025/1/Rev.1	Revised agenda of the Preparatory Commission
A/AC.296/2026/1	Rules of procedure for the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction: further revised aid to discussions and negotiations prepared by the Co-Chairs
A/AC.296/2026/2	Financial rules governing the funding of the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction and the funding of the secretariat and any subsidiary bodies: further revised aid to discussions and negotiations prepared by the Co-Chairs
A/AC.296/2026/3	Terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies, including the selection process for their members: aid to discussions and negotiations prepared by the Co-Chairs
A/AC.296/2026/4	Arrangements to enhance cooperation with relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies: draft decision of the Conference of the Parties prepared by the Co-Chairs
A/AC.296/2026/5	Operationalization of other provisions on financial resources and mechanism under the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction: aid to discussions and negotiations prepared by the Co-Chairs concerning the establishment of the voluntary trust fund as part of the financial mechanism

A/AC.296/2026/6	Operationalization of other provisions on financial resources and mechanism under the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction: note by the Co-Chairs concerning a draft decision of the Conference of the Parties for the purpose of operationalizing the special fund
A/AC.296/2026/7	Arrangements with the Global Environment Facility to give effect to the relevant provisions on funding of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction: further revised aid to discussions and negotiations prepared by the Co-Chairs
A/AC.296/2026/8	Arrangements for the functioning of the secretariat, including its seat: note by the Secretariat
A/AC.296/2026/9	Report of the Preparatory Commission for the Entry into Force of the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction and the Convening of the First Meeting of the Conference of the Parties to the Agreement
A/AC.296/2026/INF/1	Information for participants: note by the Secretariat
A/AC.296/2026/CRP.1 and A/AC.296/2026/CRP.1/Rev.1	Draft rules of procedure for the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction
A/AC.296/2026/CRP.2, A/AC.296/2026/CRP.2/Rev.1 and A/AC.296/2026/CRP.2/Rev.1/Corr.1	Draft terms of reference and modalities for the operation of, and rules of procedure for, the subsidiary bodies established under the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction

A/AC.296/2026/CRP.3, A/AC.296/2026/CRP.3/Rev.1 and A/AC.296/2026/CRP.3/Rev.1/Corr.1	Draft financial rules governing the funding of the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction and the funding of the secretariat and any subsidiary bodies
A/AC.296/2026/CRP.4, A/AC.296/2026/CRP.4/Rev.1 and A/AC.296/2026/CRP.4/Rev.1/Corr.1	Draft memorandum of understanding between the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction and the Council of the Global Environment Facility
A/AC.296/2026/CRP.5	Draft report of the Preparatory Commission
A/AC.296/2026/CRP.6 and A/AC.296/2026/CRP.6/Rev.1	Draft decision for consideration by the first meeting of the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction on arrangements to enhance cooperation with relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies
A/AC.296/2026/CRP.7	Reporting requirements under the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction: key points from the exchange of views held during the second session of the Preparatory Commission
A/AC.296/2026/CRP.8	Draft decision for consideration by the first meeting of the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction concerning the relationship between the secretariat established under article 50 of the Agreement and the United Nations
A/AC.296/2026/CRP.9	Draft decision for consideration by the first meeting of the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the

	Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction on modalities for the decision on the seat of the secretariat established under article 50 of the Agreement
A/AC.296/2026/CRP.10	Draft terms of reference for the voluntary trust fund under the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable use of Marine Biological Diversity of Areas beyond National Jurisdiction
A/AC.296/2026/CRP.11	Draft decision for consideration by the first meeting of the Conference of the Parties to the Agreement under the United Nations Convention on the Law of the Sea on the Conservation and Sustainable Use of Marine Biological Diversity of Areas beyond National Jurisdiction concerning the operationalization of the special fund established under the Agreement
